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GBS PROCESS FLOW

Off-Boarding — Organisational Employee Exit Process Flow

BCEA ss.20, 31–42 · LRA ss.186–197, 198–198B · Code of Good Practice: Dismissal, 2025 (GN 3470, GG 53294) · Income Tax Act Second and Fourth Schedules · Pension Funds Act ss.37A–37D · UIA and UICA · Insolvency Act s.38 · EEA and EE Regulations 2025 · POPIA · As at 19 October 2026

PREPARED FOR
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Working document for legal review — not legal advice.

LAW = in force; Code = Codes of Good Practice; CL = case law; DRAFT = not in force; BP = best practice.

01 / OFF-BOARDING PROCESS

Purpose, status and reading notes

This flow tells an organisation what to do, by when, and who hands off to whom, from the moment an exit is triggered until the last dispute window has closed and the exit data has fed the EE plan and retention measures. It is the closing bookend of the GBS employment lifecycle suite: the Resourcing flow brings a person in; this flow takes them out. It runs one core spine for every exit, whatever the reason, and splits only where the law splits — at the legal gate in Phase 1, which fixes the true legal reason for the exit and therefore the notice, pay and procedure that follow.

It does not repeat the procedures that lead to a dismissal. Where an exit is a dismissal for misconduct, incapacity or operational requirements, the GBS Misconduct, Incapacity and Operational Requirements flows govern the decision; this flow starts when that decision is made (and checks, at the gate, that it was made properly) and governs everything afterwards. The flow assumes no collective agreement, bargaining council agreement or sectoral determination regulates exits; where one does and gives the employee more, it prevails.

Legal status. The Code of Good Practice: Dismissal (GN 3470, GG 53294) took effect on 4 September 2025, replacing the Schedule 8 Code and the 1999 Code on operational requirements dismissals; it treats incompatibility, imprisonment and expired work permits as forms of incapacity, assesses probation against "suitability for employment", allows small businesses more flexibility, and contains a standard s.189(3) notice in Annexure A. The Code is guidance: decision-makers must take it into account (LRA ss.188(2), 203(3)), but case law applying it is still thin. The legacy uFiling employee-claims portal closed on 20 May 2026 and employees now claim unemployment benefits on UIF Online; the employer portal (declarations and contributions) was expected to migrate to UIF Online by



August 2026; as at 19 October 2026 no confirmation that the migration is complete was found, so payroll must confirm the current portal before each declaration. A search on 19 October 2026 confirmed these positions and found no amendment to the Code; re-check before adoption.

Figures in force today. BCEA earnings threshold: R269,600.90 a year from 1 May 2026. National minimum wage: R30.23 an hour from 1 March 2026. UIF earnings ceiling: R17,712 a month (R212,544 a year) since 1 June 2021 (GG 44641), so the maximum monthly employee contribution is R177.12; no later increase had been gazetted as at 19 October 2026. Retirement and severance lump-sum table: first R550,000 tax-free, then 18% to R770,000, 27% to R1,155,000 and 36% above. Withdrawal table: first R27,500 tax-free. Both apply to lifetime totals; SARS has confirmed no change for the 2027 tax year.

Labels used throughout.

- **LAW** = a statute or regulation in force (BCEA, LRA, EEA, UIA, UICA, COIDA, Income Tax Act, Tax Administration Act, Pension Funds Act, Medical Schemes Act, Insolvency Act, Companies Act, Immigration Act, OHS Act, MHSA, POPIA); binding now.
- **Code** = the Code of Good Practice: Dismissal, 2025, or the Code of Good Practice on the Prevention and Elimination of Harassment in the Workplace, 2022. Must be taken into account; departures must be justified.
- **CL** = a principle from case law, cited by name, court and year. Verify the citation and any later authority before using it in advice.
- **DRAFT** = a Bill or proposal not yet in force: the Protected Disclosures Bill, 2026 and the two-pot proposals on retrenchment access. Build readiness; do not treat as a current legal duty.
- **BP** = best practice or internal control; not a statutory deadline. Adopt as policy so it becomes binding internally.

Timing conventions. N is the date notice is given or received (or the trigger date, for exits without notice). **T** is the termination date, the employee's last day of employment. Internal periods are **working days** unless stated. Statutory periods (7 days for final pay, 30 and 90 days for referrals, 6 months under EEA s.10) are **calendar days** under the Interpretation Act 33 of 1957 s.4, excluding the first day and including the last unless it is a Sunday or public holiday. Periods under the CCMA Rules, 2023 (rule 3) are also calendar days, but a last day falling on a Saturday, Sunday or public holiday moves to the next working day, and the old 16 December–7 January exclusion no longer applies. The 30-day dismissal referral period runs from the dismissal or, if later, from the employer's final decision to dismiss or uphold the dismissal on internal appeal (LRA s.191(1)(b)(i)). Diarise referral deadlines conservatively. Never mix the two in a letter.

Design principle. Most CCMA losses on exits come from mislabelling the exit, not from mistakes in the paperwork that follows: a "resignation" that was really a constructive dismissal; a "retirement" with no agreed or normal retirement age; a "contract expiry" where the employee reasonably expected renewal; "abscondment" with no ultimatum. The flow therefore puts a mandatory legal gate at the

front, holds every termination letter until the gate is signed, and runs everything after it on one checklist so that pay, documents, access and records are the same whatever the reason.

Eight interpretation points that shape the flow.

- **The reason decides everything.** These are not dismissals: resignation; retirement at the agreed or normal age; expiry of a fixed-term contract with no reasonable expectation of renewal; death; and termination under Insolvency Act s.38. These are dismissals, each needing substantive and procedural fairness under the Code: misconduct; incapacity; operational requirements; non-confirmation after probation; constructive dismissal (LRA s.186(1)(e)); non-renewal where renewal was reasonably expected (s.186(1)(b)); and "retirement" that falls outside s.187(2)(b). A transfer of a going concern under s.197 is not an exit at all: contracts move to the new employer automatically.
- **Resignation is unilateral.** Once communicated, a resignation takes effect without the employer's acceptance, and can be withdrawn only with the employer's consent. In *Toyota SA Motors v CCMA* [2015] ZACC 40 the majority (Nkabinde J) refused leave to appeal on review-delay grounds and declined to decide the resignation point; Zondo J's dissenting (minority) judgment analysed resignation and would have held that reinstatement was not competent because the employee was serving notice. Treat that dissenting reasoning as persuasive only, not binding, and check other resignation authorities (for example *Mohlaka v Minister of Finance*, LC) against current reporters before quoting them.
- **The constructive-dismissal screen is the employer's best defence.** The employee must prove that the employer made continued employment objectively intolerable and that resigning was a last resort (CL: *Pretoria Society for the Care of the Retarded v Loots*, LAC 1997; *Strategic Liquor Services v Mvumbi*, CC 2009). A documented offer of the grievance route, made before the resignation takes effect, is the strongest answer.
- **Retirement is only safe at a proven age.** Dismissal on account of age is fair only where the employee has reached the normal or agreed retirement age (s.187(2)(b)). The agreed age comes from the contract; the normal age from practice or fund rules (CL: *Rubin Sportswear v SACCAWU*, LAC 2004). An open-ended stay-on made a later retirement automatically unfair in *Datt v Gunnebo Industries* (LC 2009). *Schweitzer v Waco* (LC 1998) supports retiring an employee at any time after the age, but a contrary view (that protection applies only at the age itself) has been expressed; act promptly, or record a stay-on with a fixed end date.
- **Pay first, argue later.** Final pay is due within seven days of termination (BCEA s.32(3)). A deduction is lawful only with written consent to a specified debt, or where the law allows it; loss or damage deductions also need fault, a fair procedure, an amount no higher than the loss and a cap of one quarter of the employee's remuneration in money (s.34). Employer claims are pursued through s.34, civil action or a Pension Funds Act s.37D request, never by self-help set-off.
- **Two-pot has changed fund exits.** From 1 September 2024 one-third of contributions go to the savings component and two-thirds to the retirement component. The retirement component is preserved until retirement; resigning or being retrenched does not



unlock it. Vested rights from before 1 September 2024 keep the old rules. Proposals to allow retrenchment access are DRAFT only, and fund rules on the vested component differ.

- **Death benefits do not follow the will.** Under Pension Funds Act s.37C, trustees have up to 12 months to trace and allocate the benefit among dependants and nominees. In *Mutsila v Municipal Gratuity Fund* (CCT 228/23) [2025] ZACC 17 the Constitutional Court held unanimously that dependency is assessed as at the date of the member's death, rejecting the SCA approach in *Fundsatwork v Guarnieri* (SCA 2019). Never promise a nominee a benefit.
- **Exit data is now a compliance input.** The 2026 EE reporting cycle (1 September 2026 to 15 January 2027, online) is the first in which employers are measured against annual targets aligned to the sectoral numerical targets. Terminations by designated group feed EEA2, and exit reasons feed the EEA12 barrier analysis. An employer that learns of harassment in an exit interview and does nothing risks EEA s.60 liability, even though the employee is leaving.

Roles used. HR Off-Boarding Owner (HRO, the process owner and spine; in smaller organisations the HR manager); Line Manager (LM); Legal / IR (LA); Payroll (PAY); Finance (FIN); IT (IT); Security (SEC); Facilities (FAC); Benefits administrator (BEN); Occupational Health and Safety practitioner (OHP); EE Manager (EEM); Company Secretary (COSEC); Communications (COM); Exit Interviewer (EXI: neutral HR, not the HR business partner who handled the exit, or a third party); HR Analytics (HRA); Senior Sign-off (SSO); EXCO and the EE Committee (EXCO, EEF). The employee (EMP) and their representative (REP); for a death, the executor and next of kin (EXE). External: retirement fund and administrator (FUND); medical scheme (MS); group-risk insurer (INS); SARS; UIF; Compensation Fund; trustee or liquidator (TRU); TES; CCMA or bargaining council; Labour Court (LC).



Master flow at a glance

Every exit enters through Phase 1, where the legal gate fixes the branch. Four families of branch (employee-initiated, employer-initiated, agreed or fixed end, and operation of law) then rejoin one common spine: notice and handover (Phase 2), final pay and statutory documents (Phase 3), assets, access and restraint (Phase 4), and the exit interview, records and closure (Phase 5). Phase 6 turns the exit data into EE, retention and policy action. The dispute-risk and settlement track is not a phase: it opens at N and runs until the last referral window has closed.

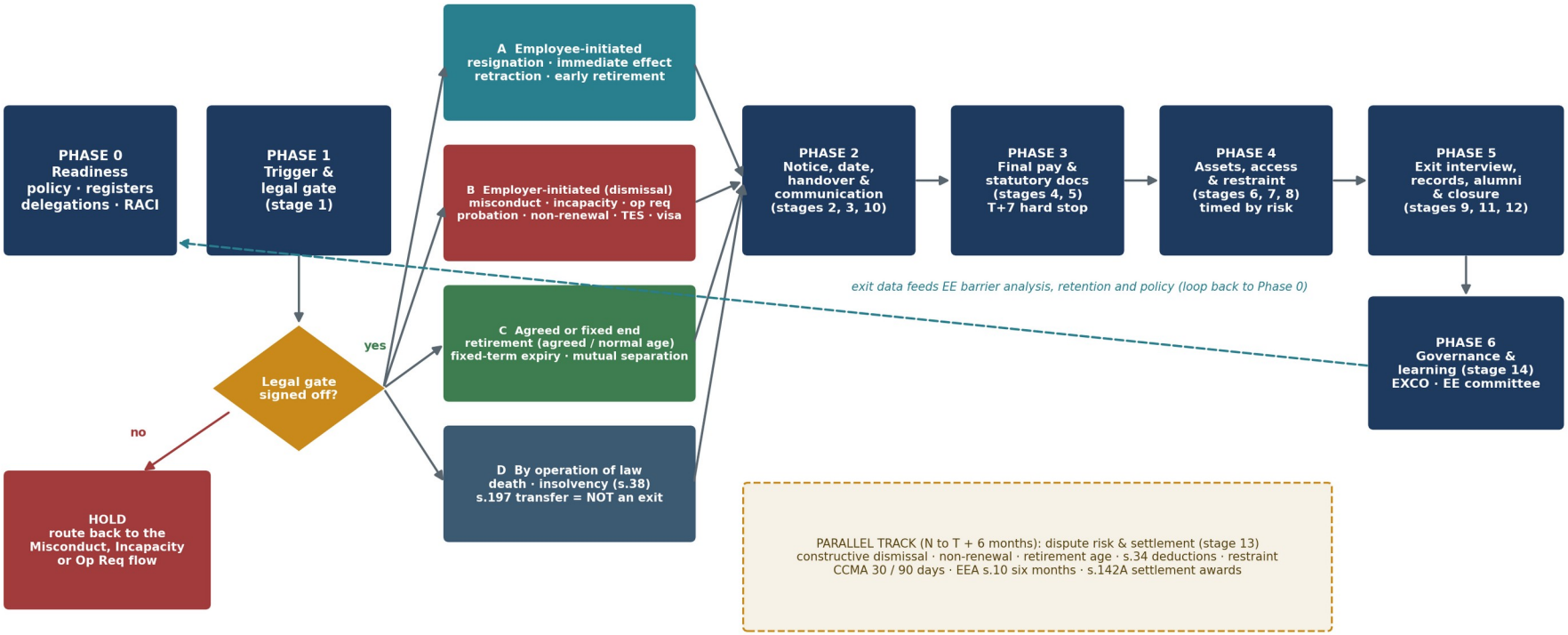


Figure 1 — Master flow: one legal gate, four branch families, one common spine

Where each of the fourteen core stages sits

The GBS Off-Boarding Framework describes fourteen sequential core stages. This flow keeps every stage and places each in the standard Phase 0–6 structure used across the suite, so that roles, forms and deadlines line up with the other flows.

Core stage	Timing	Phase and steps in this flow	Primary owner
1 Exit trigger, verification and legal gate	N	Phase 1 (1.1–1.15)	HRO; LA signs
2 Termination date, notice and leave	N to N+2	Phase 2 (2.1–2.8)	HRO
3 Knowledge transfer and continuity	N to T−2	Phase 2 (2.9–2.12)	LM
4 Final remuneration	T−5 to T+7	Phase 3 (3.1–3.9)	PAY
5 Statutory documents, benefits and notifications	T to T+14	Phase 3 (3.10–3.18)	HRO, BEN
6 Return of property and asset recovery	T−5 to T	Phase 4 (4.1–4.4)	LM, FAC
7 IT and security deprovisioning	Timed by risk tier	Phase 4 (4.5–4.9)	IT, SEC
8 Restraint of trade and confidentiality	N to T+30	Phase 4 (4.10–4.13)	LA
9 Exit interview and post-exit survey	T−10 to T−2; T+30 to T+90	Phase 5 (5.1–5.7)	EXI
10 Communication and reputation	N to T	Phase 2 (2.13–2.16)	LM, COM
11 System closure, records and retention	T to T+30	Phase 5 (5.8–5.11)	HRO
12 Alumni, rehire and boomerangs	T to T+12 months	Phase 5 (5.12–5.15)	HRO
13 Dispute risk and settlement	N to T+6 months	Section 10 parallel track (P1–P12)	LA
14 Monitoring and continuous improvement	Quarterly; annual	Phase 6 (6.1–6.7)	HRO, EEM

The legal gate and branch router (Phase 1)

Figure 2 shows the one question that decides the branch — who, in law, ended the contract — and the check that must be passed on each branch before anything leaves the organisation. A failed check on the employer-initiated branch is a hold, not a correction: the matter returns to the Misconduct, Incapacity or Operational Requirements flow, and no termination letter issues until the gate is signed.



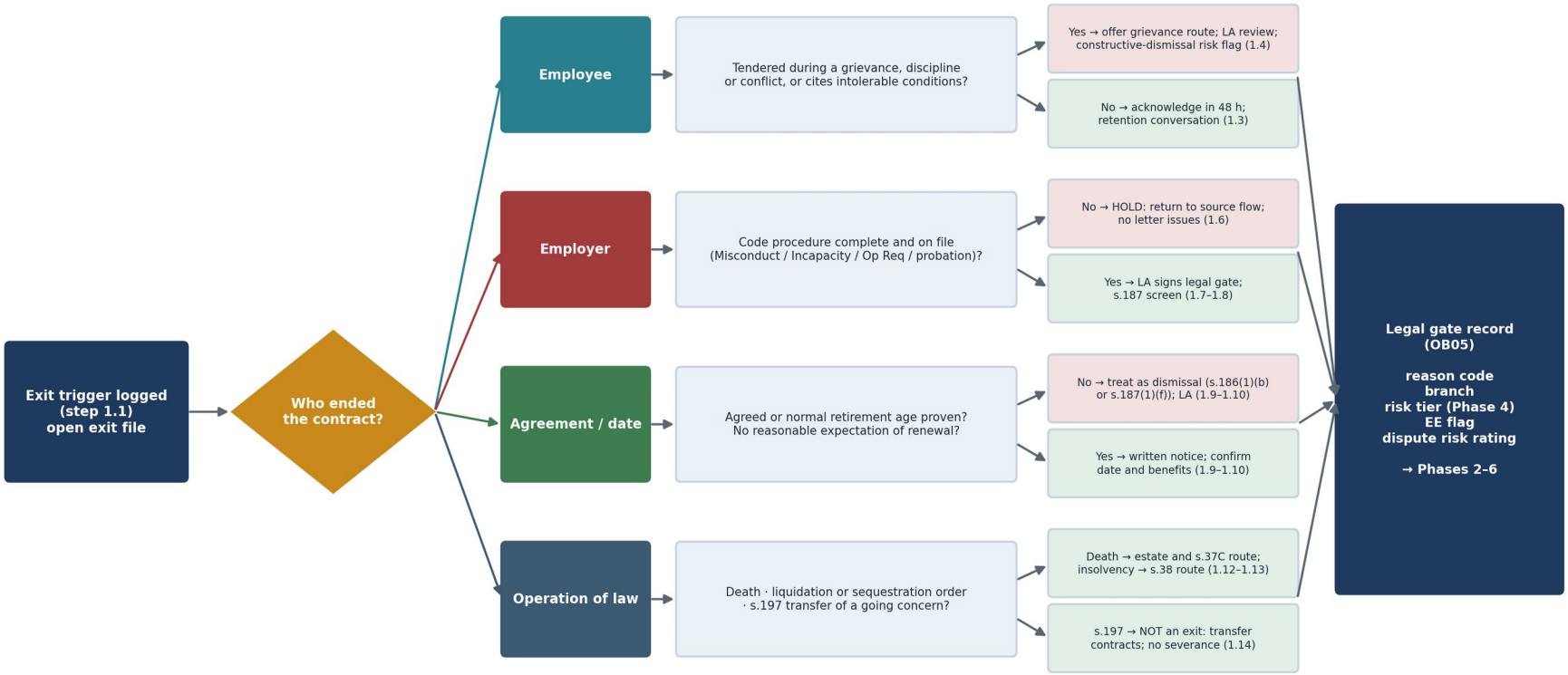


Figure 2 — Legal gate and branch router

Exit-type branches compared

Twenty exit types are routed through the gate. The core spine applies to all of them; this table shows only what changes. "Source flow" names the GBS flow that governs the decision before the gate.

Exit type	Dismissal?	Notice	Pay and severance	Special steps	Key risks	Source flow
Resignation	No	Employee gives s.37 or contractual notice; early release means paying the balance	s.40; no severance	Constructive-dismissal screen (1.4); retention conversation (1.3)	Tainted resignations; leave forced during notice	This flow
Immediate-effect resignation	No	Notice breached	s.40; shortfall recoverable only under s.34 or as damages	Waive in writing or claim; secure access at once (high tier)	Unlawful set-off; resigning to evade discipline	This flow; Misconduct P5
Retracted resignation	N/A	Resignation stands unless the employer agrees	N/A	Written decision with reasons; consistent approach (1.5)	Inconsistency	This flow
Constructive dismissal	Yes, if proven	N/A	Compensation up to 12 months (24 if automatically unfair)	Offer grievance route before T; LA review	Grievances ignored	This flow; P3
Misconduct	Yes	Notice or PILON; none if summary	s.40	Code procedure; s.37D if loss; high IT tier	Procedural defects (inconsistency is not automatically fatal under the Code)	Misconduct
Poor performance / incompatibility	Yes	Notice or PILON	s.40	Training, support and time; incompatibility is incapacity	Support skipped	Incapacity 2A, 2D
Ill health / injury / medical boarding	Yes, unless retirement by agreement	Notice or PILON	s.40; fund ill-health benefit; income-protection claim	Investigate; alternatives; accommodation; COIDA; keep in service until the insurer decides	Dismissing before the disability claim, so cover is lost	Incapacity 2B; COIDA
Imprisonment	Yes	Notice or PILON	s.40	Code treats as incapacity	Treating absence as desertion	Incapacity 2C



Exit type	Dismissal?	Notice	Pay and severance	Special steps	Key risks	Source flow
Operational requirements	Yes	Notice or PILON	s.40 + s.41 severance (at least 1 week per completed year); forfeited on unreasonable refusal of an alternative	Annexure A notice; joint consensus-seeking consultation; fair selection; s.189A timelines	Sham consultation; unfair selection	Operational Requirements
Probation (non-confirmation)	Yes	Contract or s.37	s.40	Code: "suitability"; representations; reasons may be less compelling	Repeated extensions	Incapacity; Resourcing 5.10
Normal or agreed retirement	Fair at the proven age (s.187(2)(b))	Written notice 3–6 months ahead (BP)	s.40; fund retirement benefit; severance table for gratuities	Confirm age source (1.9); any stay-on in writing with an end date	Open-ended stay-on (*Datt*)	This flow
Early retirement	No, if voluntary	As agreed	Fund early-retirement benefit; enhancement taxed	Confirm voluntariness; financial advice	Disguised retrenchment	This flow; Op Req
Fixed-term expiry	No, unless renewal reasonably expected (s.186(1)(b))	Written non-renewal notice at least one notice period before expiry	s.40; s.198B(10) severance for contracts over 24 months (below threshold), unless an equivalent post is offered (s.198B(11))	Below threshold, contracts over 3 months need a justifiable reason (s.198B)	Rolling renewals	Resourcing 5B
Mutual separation	No, if genuine	As agreed	As agreed; tax directive	Advice clause; reflection period; s.142A award (1.11)	Duress; "resign or be fired"	This flow
Abscondment / desertion	Treated as misconduct	N/A	s.40 to the bank account on file	Contact log; written ultimatum; hearing notice; outcome in absence; check hospital, arrest, death	"Deemed resignation" with no process	Misconduct

Exit type	Dismissal?	Notice	Pay and severance	Special steps	Key risks	Source flow
TES end of assignment	TES must follow a fair process; client may be deemed employer (s.198A(3)(b))	Contract	s.40; joint and several liability (s.198(4))	Redeployment; client's own process for deemed employees	"Automatic termination" clauses	Resourcing 5C
Foreign national, visa expired	Yes: still an LRA employee (*Discovery Health v CCMA*, LC 2008)	Suspension or incapacity process	s.40	Code treats as incapacity; time to renew; stop work at expiry (Immigration Act)	Summary termination	Incapacity; Resourcing 5D
Death	No (ends by operation of law)	None	s.40 amounts to the estate; fund benefit under s.37C (up to 12 months); group life to beneficiaries; UIF dependants' benefit	Single family contact; EAP; tax directive; COIDA if work-related (1.12)	Informal payments to relatives; promising nominees a benefit	This flow; COIDA
Insolvency (s.38)	Termination by trustee, liquidator or operation of law	Suspended with no pay; ends 45 days after final appointment	UIF during suspension (s.38(3)); severance of at least 1 week per completed year from the estate (BCEA s.41(2)); s.38(10) compensation claim; s.98A preference	Trustee must consult (1.13)	Employees unaware of UIF	This flow
Transfer of business (s.197)	Not an exit	None	No severance; continuity; s.197(7) liabilities	POPIA data transfer; s.14 PFA fund transfer (1.14)	Dismissal because of the transfer is automatically unfair (s.187(1)(g))	This flow

The off-boarding clock

Figure 3 shows the stages on one timeline for an example four-week notice period. Only final pay (T+7), the UIF declaration (by the 7th of the following month) and the referral windows are statutory; the rest are internal targets that must be written into policy to bind.

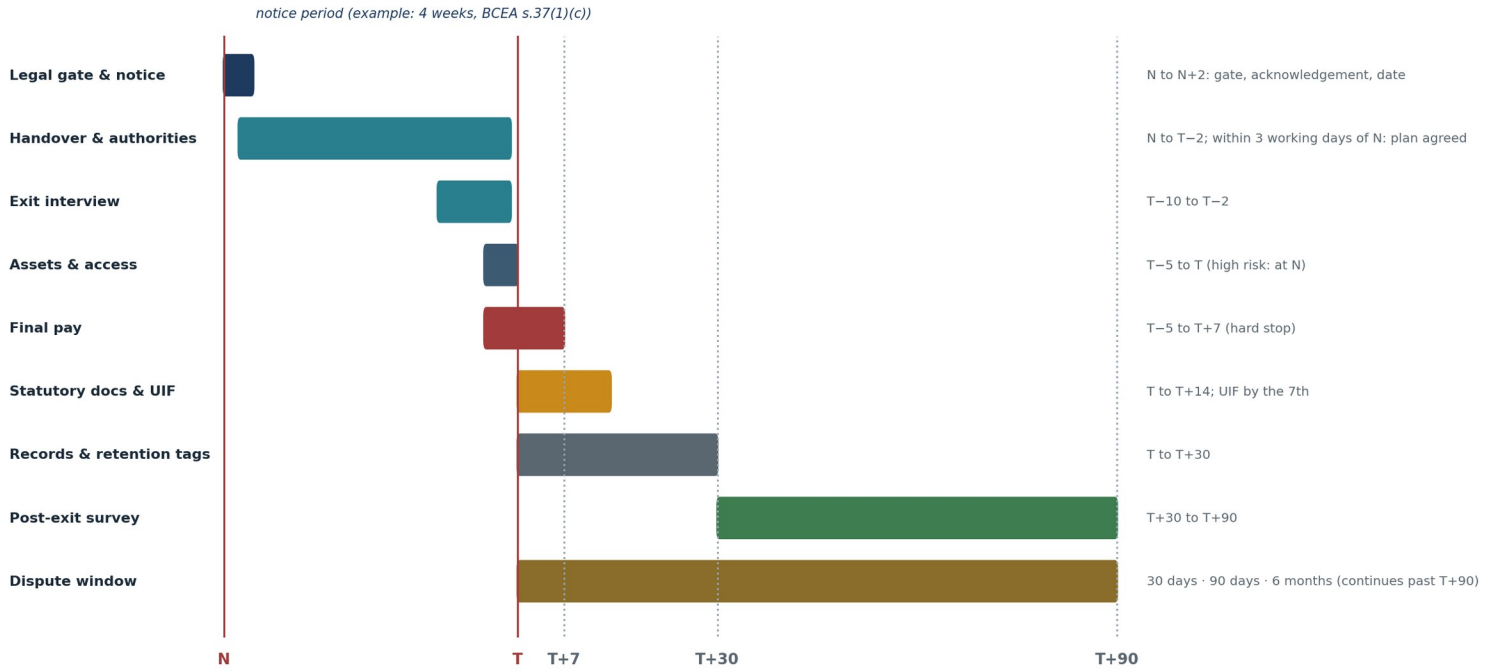


Figure 3 — Off-boarding clock from N to T+90

Integrated swimlane view

Read each phase column top to bottom to see who acts and who hands off; read each lane left to right to see one party's whole job. The HR Off-Boarding Owner lane is the spine: every other lane connects to it, and the dispute-risk and settlement track runs underneath from N until the referral windows close.

	0 Readiness	1 Trigger & legal gate	2 Notice, handover & comms	3 Final pay & statutory docs	4 Assets, access & restraint	5 Interview, records & close	6 Governance
HR off-boarding owner (spine)	Policy, registers, RACI, templates	Log trigger; open file; acknowledge	Set T; service mode; notice letter	Certificate; UIF; benefit notices	Asset & access checklist sign-off	Close HRIS; tag retention; rehire flag	Metrics; audit; refresh
Line manager	Trained on the 'never' list	Report trigger; context	Handover plan within 3 days	Commission & bonus input	Recover assets; client-risk view	Farewell; team message	Act on themes
Legal / IR	Approve policy; settlement template	Sign legal gate; s.187 screen	Notice checks; non-renewal	s.34 & s.37D advice	Restraint: enforce or waive	Litigation hold release	Legislative watch
Payroll / Finance	Final-pay calculator	Freeze changes; flag loans	Leave balance; PILON quote	Pay by T+7; IRP3(a); IRP5; EMP501	Card & fuel cancellation	Records 5 years (TAA s.29)	Compliance rates
IT / Security / Facilities	Asset & access register from onboarding	Risk tier; high = revoke now	Reduce rights (medium tier)	—	Revoke; wipe; auto-reply; DLP	Mailbox retention; destroy on schedule	SLA reporting
Benefits / OHS / EE manager	Two-pot sheet; fund contacts	EE flag on designated exits	Exit medical booked	Fund, medical & group-risk notices	—	Interview triage; EEA2 coding	EEA12 barriers; EE committee
Employee / executor	Acknowledge policies	Resign in writing / receive notice	Work notice; hand over	Bank details; fund election	Return property; delete data	Interview (voluntary); survey	Alumni (consent)
Parallel track		Dispute risk & settlement track: constructive dismissal · non-renewal · retirement · s.34 · restraint · CCMA / LC / EEA s.10 · s.142A					

Figure 4 — Integrated swimlane

Phase 0 — Readiness (standing obligations)

Phase 0 has no case trigger. It must be in place before the first exit, because most off-boarding failures are fixed before the notice arrives: there is no asset register to recover against, no written consent for the loan deduction, no agreed retirement age in the contract, no restraint worth enforcing.

Step	Organisational action	Owner	Deadline	Form / output	Authority
0.1 Adopt the off-boarding policy	Board-approved policy covering: the legal gate and who signs it; the branch rules; notice and service modes (worked, garden leave, PILON, early release); final pay and deductions; statutory documents; benefits briefings; asset recovery; risk-tiered deprovisioning; restraints; exit interviews and the post-exit survey; communications; records and retention; rehire; settlements; the manager "never" list. Reconcile with collective agreements, which prevail.	BOARD, HRO, LA	Now; review annually	OB01	BCEA; LRA; Code; BP
0.2 RACI and delegations	Adopt the RACI in section 12; set who may accept a retraction, grant early release, approve garden leave or PILON, waive notice, approve a settlement, and enforce or waive a restraint.	SSO, HRO	Now	OB02	BP
0.3 Contract terms that make exits work	Employment contracts carry: notice periods at or above BCEA s.37; garden-leave and PILON clauses; return-of-property and data-deletion duties; specific written deduction consents for loans, advances and bursary or training clawbacks (a general "any amount owing" clause is not enough); a stated agreed retirement age; restraint and confidentiality clauses only where a protectable interest exists. Update the Resourcing contract template (RS35).	LA, HRO	Now; on hire	RS35 update	BCEA ss.34, 37, 38; LRA s.187(2)(b); CL: *Basson v Chilwan* (AD 1993)

Step	Organisational action	Owner	Deadline	Form / output	Authority
0.4 Asset and access register from onboarding	Every device, card, key, vehicle, token, PPE item and system entitlement issued is recorded against the employee from day 1, so Phase 4 reconciles against a list rather than memory. Add this to the onboarding checklist (RS39).	IT, FAC, HRO	Now; on every issue	OB03	BP
0.5 Final-pay calculator and payroll controls	Standard calculator covering every item in the final-pay checklist (section 6); two-person sign-off; a directive-request routine; a rule to pay undisputed amounts on time when a directive is late.	PAY, FIN	Now	OB20	BCEA ss.32(3), 34, 40, 41; Income Tax Act
0.6 Benefits exit map and two-pot briefing sheet	With each fund administrator, medical scheme and group-risk insurer: notification deadlines; forms; preservation, transfer and withdrawal options; the two-pot position (savings, retirement and vested components); continuation membership; conversion windows. Build a one-page two-pot briefing sheet.	BEN	Now; on fund rule change	OB26	Pension Funds Act; Revenue Laws Amendment Act, 2024 (verify Act number); Pension Funds Amendment Act 31 of 2024; Medical Schemes Act; policy terms
0.7 Authorities register	Register of bank mandates, signing powers, directorships and statutory officer roles, POPIA information-officer delegations, EE and B-BBEE committee roles, OHS Act s.16(2) and ss.17–19 appointments, AARTO proxy registrations, and delegated procurement authorities, each linked to the holder.	COSEC, HRO	Now; on every appointment	OB19	Companies Act s.70(6); POPIA s.56; OHS Act; AARTO flow 0.3
0.8 Deprovisioning runbook	Risk tiers (section 7), revocation SLAs, auto-reply and mail-forwarding rules, litigation-hold triggers, device-wipe procedure, DLP log review within the IT policy and lawful monitoring consents.	IT, SEC, LA	Now	OB30; OB31	POPIA ss.19, 21; RICA; BP



Step	Organisational action	Owner	Deadline	Form / output	Authority
0.9 Exit interview programme	Interview guide and POPIA notice; who conducts (neutral HR or third party); 48-hour triage routes (harassment, PDA, OHS); coded reason list aligned to EEA2 and UIF categories; post-exit survey; aggregation rules (no group smaller than five); anonymisation period (BP: 2 years).	HRO, EEM, IO	Now	OB33–OB35	POPIA ss.11, 26–27; Harassment Code; EEA s.60; BP
0.10 Reason-code alignment	One reason-code table that maps each exit type to the HRIS code, the UIF termination reason code and the EEA2 termination category, so that payroll, UIF and EE reporting tell the same story.	HRO, PAY, EEM	Now	OB37 code table	UIA; EE Regulations 2025; BP
0.11 Records retention schedule	Adopt the schedule in section 8 (step 5.9); tag every exit file with its destruction date; secure destruction procedure.	HRO, IO	Now	OB37	BCEA s.31; TAA s.29; EEA s.26; POPIA s.14
0.12 Settlement templates	Settlement agreement template with full and final settlement, carve-outs for vested fund benefits and COIDA, advice acknowledgement, reflection period and s.142A consent.	LA	Now	OB11	LRA s.142A; BP
0.13 Stay interviews	Annual stay interviews for key talent and designated-group employees, with manager follow-up tracked, so that exits are prevented rather than explained afterwards.	LM, HRO, EEM	At least annually	Stay-interview record	BP
0.14 Train managers on the "never" list	No forced leave during notice; no withholding pay without meeting s.34; no withholding certificates, and no reason on them unless requested; no defamatory announcements; no "resign or be fired" ultimatums; no informal promises about fund benefits.	HRO / L&D	Before first exit; annually	Attendance records	BP
0.15 Small-employer version	Where HR capacity is limited, keep the core: legal check for any contested exit; written notice; final pay within 7 days with lawful deductions only; certificate of service; UIF declaration; property and access; records. Everything else is scaled down.	HRO, LA	Now	Simplified checklist	Code (small business); BP



Employee side of Phase 0. Nothing is owed yet, but the employee's later position depends on this phase. An employee who never signed a specific loan-deduction consent cannot have the loan deducted from final pay, whatever they owe; and an employee whose contract names no retirement age cannot safely be retired without proof of a normal age.

Watch. The single most common Phase 0 gap is the missing asset register. Without it, Phase 4 becomes an argument, and an argument is where unlawful set-offs start.



Phase 1 — Exit trigger, verification and legal gate

Phase 1 establishes the true legal reason for the exit, chooses the branch, and holds the termination until a legal check confirms it. N is the day the trigger reaches any manager, not the day HR opens the file.

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
1.1 Log the trigger and open the file	Resignation letter; disciplinary, incapacity or s.189 outcome; retirement date; contract end date; notice of a death; liquidation or sequestration order; TES end-of-assignment notice; permit expiry.	Record: trigger type; date received; how received; employee status flags (probation, fixed-term, TES, foreign national, union representative, COIDA claimant, discloser, designated group). Open the exit file and the workflow that triggers Phases 2–5.	LM → HRO	Day N (same day)	OB04	BP
1.2 Freeze and notify	File opened.	Freeze pay and grade changes pending exit; tell payroll the expected T; flag designated-group exits to the EEM; flag loans, advances and clawbacks to Finance.	HRO	N	OB04	BP

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
1.3 Resignation: acknowledge	Written resignation received.	Resignation is effective without acceptance. Acknowledge in writing: date received; notice period and T; service mode; no leave during notice; handover; final pay; property; restraint; exit interview invitation (OB06). Hold a retention conversation where the employee is regrettable talent, without pressure.	HRO, LM	Within 48 hours of N (BP)	OB06	BCEA s.37; CL: *Toyota SA Motors v CCMA [2015] ZACC 40 (resignation point: Zondo J, dissent)*
1.4 Constructive-dismissal screen	Resignation tendered during a grievance, disciplinary or incapacity process, or conflict, or citing intolerable conditions.	Offer the grievance route in writing before the resignation takes effect and record the offer and the response; LA reviews. Flag the dispute risk. Do not ask the employee to "reconsider" in a way that could be read as pressure.	HRO, LA	Before T; ideally within 2 working days of N	OB07	LRA s.186(1)(e); CL: *Loots* (LAC 1997); *Mvumbi* (CC 2009)
1.5 Heat-of-the-moment resignations and retractions	Resignation tendered in anger, or a request to withdraw.	Treat a heat-of-the-moment resignation with care: confirm intention in writing after a cooling-off period (BP: 24 hours) rather than acting on it at once. A communicated resignation can be withdrawn only with the employer's consent: decide, record reasons, and apply the approach consistently.	HRO, SSO	Within 2 working days (BP)	OB08	CL: *Toyota* (Zondo J, dissent); BP

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
1.6 Dismissal record check	Any employer-initiated termination.	Before any letter goes out, confirm that the file shows the Code-compliant procedure: charges, hearing, outcome and appeal (Misconduct); investigation, support and enquiry (Incapacity); notice, consultation and selection (Operational Requirements); probation review and representations. If not, HOLD and return to the source flow.	LA	Before the notice of termination	OB05 part A	LRA ss.188, 189; Code
1.7 Automatically unfair screen	Any exit, especially dismissals and non-renewals.	Check for any link to a protected disclosure, an EE or harassment complaint, pregnancy, disability, age, union activity, exercising LRA rights, or a s.197 transfer. A link needs LA review and a documented independent reason.	LA, HRO	Before the gate is signed	OB05 part B	LRA s.187(1); PDA; EEA s.6
1.8 Sign the legal gate	1.3–1.7 done for the branch.	LA signs off every dismissal and every resignation flagged at 1.4 before it takes effect. Record: reason code; branch; risk tier (section 7); EE flag; dispute-risk rating. No termination letter issues without it.	LA	Before the letter issues	OB05	BP (highest-return control)
1.9 Retirement branch	Employee approaching retirement, or a retirement letter proposed.	Prove the agreed age (contract) or the normal age (practice or fund rules). Give written notice 3–6 months ahead (BP). Any stay-on is in writing with a fixed end date; never open-ended. Where there is no proven age, the exit is a dismissal: treat accordingly.	HRO, LA	3–6 months before the date (BP)	OB09	LRA s.187(2)(b); CL: *Rubin Sportswear* (LAC 2004); *Datt v Gunnebo* (LC 2009); *Schweitzer v Waco* (LC 1998)

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
1.10 Fixed-term, TES, probation and visa branches	Contract end date approaching; TES assignment ending; probation review; permit expiry.	Fixed-term: check for a reasonable expectation of renewal and, below the threshold, the s.198B reason; issue the non-renewal letter at least one notice period before expiry. TES: check deeming (s.198A(3)(b)) before accepting "end of assignment". Probation: route to the probation review. Visa: suspension or incapacity process, with time to renew; stop work at expiry.	HRO, LA	One notice period before expiry; before any TES end	OB10	LRA ss.186(1)(b), 198A, 198B; Code; Immigration Act; CL: *Discovery Health* (LC 2008)
1.11 Mutual separation	Either party proposes an agreed exit.	Confirm it is genuine: no "resign or be fired" framing; time to take independent advice; a reflection period; settlement terms from OB11; LA approves. Where the CCMA could arbitrate the dispute, make the settlement an award under s.142A.	LA, SSO	Before signature	OB11	LRA s.142A; BP
1.12 Death in service	Notice of death.	Appoint one contact person for the family; do not announce until the family has been informed; EAP for the team; pay s.40 amounts only to the estate (executor's account); notify the fund (s.37C, up to 12 months to allocate), group life and the UIF (dependants' benefit); if the death is work-related, notify the DEL provincial director immediately and report on W.Cl.2 within 7 days (OHS Act s.24; GAR reg 8) and report the accident to the Compensation Commissioner within 7 days (COIDA s.39(1)); tax directive for any lump sum. No informal payments to relatives.	HRO, BEN, PAY	Same day for the family contact; work death: DEL immediately, W.Cl.2 and COIDA report within 7 days	OB13	PFA s.37C; CL: *Mutsila* [2025] ZACC 17; OHS Act s.24; GAR reg 8; COIDA s.39; Administration of Estates Act



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
1.13 Insolvency	Sequestration or liquidation order granted.	Contracts are suspended from the order; no remuneration is paid during suspension, but employees may claim UIF (s.38(3)). Tell employees in writing at once. The trustee or liquidator must consult before terminating contracts; unless continued employment is agreed, contracts end 45 days after the final trustee or liquidator is appointed. Claims rank under s.98A. Employees whose contracts end under s.38 may claim severance pay of at least one week's remuneration per completed year of service from the estate (BCEA s.41(2)), and compensation for loss caused by the suspension or early termination (Insolvency Act s.38(10)). Consultation proposals are made in writing within 21 days of the trustee's appointment (s.38(7)). (Business rescue is different: contracts continue — see section 15.)	HRO, LA, TRU	On the order	OB14	Insolvency Act ss.38, 98A; BCEA s.41(2); Companies Act s.136 (rescue)
1.14 Transfer of a going concern	Sale or outsourcing that may be a s.197 transfer.	Not an exit: contracts transfer automatically on the same terms, with continuity of service. Do not pay severance; transfer personnel data under POPIA; arrange the fund transfer (PFA s.14); agree the s.197(7) liabilities. A dismissal because of the transfer is automatically unfair.	LA, HRO	Before the transfer date	OB15	LRA ss.187(1)(g), 197; PFA s.14; POPIA
1.15 Abscondment	Employee absent without contact.	Log every contact attempt (phone, email, next of kin, home visit); check hospitals, SAPS and mortuary where appropriate; send a written ultimatum to return; then a hearing notice; outcome in absence. There is no "deemed resignation" without a process.	LM, HRO	Start by working day 3 of absence (BP)	OB16	Code; Misconduct flow

Employee obligations at this stage. Resign in writing (except an illiterate employee); state the notice being given; raise any grievance before resigning if the reason is the employer's conduct; tell the employer promptly of any change of mind, knowing withdrawal needs consent.

Hand-offs. LM → HRO (same day). HRO → LA (gate, screens). HRO → PAY (freeze, expected T). HRO → EEM (designated-group flag). HRO → BEN (death, retirement). HRO → Misconduct, Incapacity or Operational Requirements flow (hold).

Watch. Accepting a resignation tendered to avoid discipline and then continuing the hearing is risky once the resignation has taken effect: take LA advice before T, and consider whether the enquiry can conclude during the notice period.



Phase 2 — Notice, termination date, handover and communication

Phase 2 sets a lawful end date, decides how the notice period will be served, protects continuity, and controls what is said about the exit. It combines core stages 2, 3 and 10.

Notice and termination date

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2.1 Confirm the notice period	Gate signed.	Apply the greater of the contract, collective agreement and BCEA s.37(1): 1 week if employed 6 months or less; 2 weeks if more than 6 months but not more than a year; 4 weeks if more than a year, or for farm and domestic workers employed more than 6 months.	HRO	N to N+2	OB17	BCEA s.37(1)–(2)
2.2 Form of notice	Period confirmed.	Notice must be in writing, except when given by an illiterate employee, and must be explained orally in a language the employee reasonably understands if they cannot understand it (s.37(5)). An employer's notice may not be given during any Chapter Three leave (annual, sick, maternity, parental, family responsibility), nor run concurrently with such leave except sick leave (s.37(6)). An employee may resign while on leave. Confirm verbal notice in writing the same day.	HRO	N to N+2	OB17	BCEA s.37(5)–(6)



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2.3 No leave during notice	Employee asks for, or manager proposes, leave during notice.	The employer may not require or permit annual leave during notice: pay accrued leave out instead (s.40). Sick and family responsibility leave remain available.	HRO, PAY	Throughout notice	OB17	BCEA ss.20(5)(b), 40
2.4 Choose the service mode	Notice confirmed.	One of: worked notice; garden leave (full pay and benefits, no duties, no access; needs a contractual basis or consent, and commission earners are compensated for average commission); payment in lieu under s.38; early release with the balance paid. Record the choice and the reason.	HRO, LM, SSO	N to N+2	OB17	BCEA s.38; contract; BP
2.5 Releasing a resigning employee early	Employer does not want the notice worked.	Where the employee has given notice and the employer waives any part of it, BCEA s.38(2) requires the employer to pay the remuneration for the waived period unless the parties agree otherwise (record any such agreement in writing). Releasing without pay and without agreement is a BCEA breach and may be argued to be a dismissal.	HRO	On the decision	OB17	BCEA s.38(2)
2.6 Immediate-effect resignation	Employee leaves without notice.	Breach of the notice obligation. Either waive the notice in writing, or recover the shortfall only within s.34 or through a damages claim; never by withholding final pay. Move to the high risk tier at once.	HRO, LA	Within 2 working days (BP)	OB17	BCEA ss.34, 37; common law
2.7 Fixed-term non-renewal	Contract end approaching.	Written non-renewal letter at least one notice period before expiry, stating the expiry date, that no renewal is offered, and the s.198B(10)–(11) severance position where relevant.	HRO	One notice period before expiry	OB10	LRA ss.186(1)(b), 198B

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2.8 Diarise the clock	T fixed.	Diarise: handover by T−2; exit interview T−10 to T−2; assets and access T−5 to T; final pay by T+7; UIF by the 7th of the following month; statutory documents by T+14; records by T+30; survey T+30 to T+90; referral windows.	HRO	N+2	OB04 tracker	BCEA s.32(3); UIA; LRA s.191

Knowledge transfer and continuity

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2.9 Handover plan	T fixed.	Agree a written plan covering: open matters and projects; client maps; vault credentials (transferred, never shared); document locations; deadlines and diarised dates; key relationships.	LM, EMP	Within 3 working days of N (BP)	OB18	BP
2.10 Successor and succession slate	Plan agreed.	Arrange shadowing by the successor; update the succession slate; open a requisition if the role will be filled (link: GBS Resourcing flow step 1.1).	LM, HRO	Before T−5	OB18	Resourcing flow
2.11 Withdraw authorities and appointments	Plan agreed.	Using the authorities register: bank mandates and signing powers; CoR39 for directors; POPIA information-officer and deputy delegations; EE and B-BBEE committee roles; OHS Act s.16(2) and ss.17–19 appointments (replace, do not leave vacant); AARTO proxy (replace on eNaTIS immediately); procurement delegations; powers of attorney.	COSEC, HRO, FIN	By T; CoR39 within 10 business days of the change	OB19	Companies Act s.70(6); POPIA s.56; OHS Act; AARTO flow 0.3
2.12 High-risk or garden-leave handover	Risk tier high, or garden leave.	Handover in writing and under supervision, without fresh system access. The manager, not the leaver, operates the systems.	LM, IT	At N	OB18	BP



Communication and reputation

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2.13 Internal announcement	T fixed.	Voluntary exits: agree the wording with the employee. Dismissals: neutral wording only ("X is no longer with the company; contact Y"). Never imply dishonesty; a disciplinary finding under challenge does not make an allegation "true" for defamation purposes.	LM, COM	Before or at T	OB36	Common law (defamation); POPIA
2.14 Client and supplier transition	Client-facing role.	Transition letter naming the new contact; no reasons.	LM, client owner	Before T	OB36	BP
2.15 Farewells and support	Voluntary exit or retirement; retrenchment or death.	Farewell for voluntary exits and retirements; EAP after retrenchments or deaths.	LM, HRO	At T	—	BP
2.16 Death announcements	Death in service.	Only after the family has been informed and agrees the wording.	HRO, COM	After family confirmation	OB13	BP

Exit correspondence register

Every exit uses a subset of these letters. Codes L1–L12 are used across this flow; each maps to a form in section 13. "Required contents" is the minimum; branch-specific notices from the Misconduct, Incapacity and Operational Requirements flows add their own content but must carry the common block.



Letter	When	Required contents	Form
L1 Acknowledgement of resignation	Within 48 hours of N	Date received; notice period and T; service mode (worked, garden leave, or early release with the balance paid); no leave during notice and accrued leave to be paid; handover expectations; final pay components and payment date; return of property; restraint reminder; exit interview invitation; benefits information; thanks.	OB06
L2 Grievance-route offer	Before T, where 1.4 applies	Acknowledges the resignation and the concerns raised; offers the grievance procedure with a named contact and timeframe; states the resignation remains effective unless withdrawn with consent; invites a response by a date.	OB07
L3 Retraction decision	Within 2 working days of request	Request received; decision (consent or not); reasons; effect on T and on any process.	OB08
L4 Retirement notice	3–6 months before the date (BP)	Agreed or normal retirement age and its source; retirement date; fund retirement options; any gratuity and its tax; stay-on terms with a fixed end date, if any.	OB09
L5 Fixed-term non-renewal	At least one notice period before expiry	Contract and expiry date; no renewal offered; s.198B(10) severance where applicable (none if s.198B(11) applies); final pay; certificate; UIF.	OB10
L6 Notice of termination (dismissal) — common block	With the outcome (D30, I32, R29)	Process followed and outcome date; reason in neutral terms; T and whether notice is worked or paid in lieu (or summary and its basis); final pay and any severance; internal appeal (if any); right to refer an unfair dismissal dispute to the CCMA or bargaining council within 30 days of the date of dismissal or, if later, of the employer's final decision to dismiss or to uphold the dismissal on internal appeal; property, access and restraint; certificate of service and UIF documents; EAP.	OB12
L7 Service-mode letter	N to N+2	Worked notice, garden leave terms (pay, benefits, no duties, no access, contactability, restraint period interaction) or PILON amount; early-release terms.	OB17
L8 Final-pay schedule	With payment, by T+7	Itemised amounts and deductions with their legal basis; tax directive status; explanation in writing of any delayed item; payslip.	OB20
L9 Benefits exit pack	Before T	Fund withdrawal options and two-pot sheet; medical scheme continuation and late-joiner warning; group-risk conversion options and deadlines; UIF Online guidance.	OB26



Letter	When	Required contents	Form
L10 Written demand for property	T+1 for unreturned items	Items outstanding (from the asset register); return date and method (prepaid courier for remote staff); consequence (civil claim or criminal complaint); no threat of set-off outside s.34.	OB29
L11 Restraint reminder	With the exit pack	The clause and date signed; plain-language scope, duration, area and non-solicitation; protectable interests described generally; optional request to disclose the new role; return or destruction of company data; invitation to discuss a waiver; rights reserved, without threats.	OB32
L12 Certificate of service	At T	Full name; employer's name and address; bargaining council or sectoral determination; start and end dates; job title or description; remuneration at termination; reason for termination only if the employee asks.	OB24

Employee obligations at this stage. Serve the notice given; hand over fully; do not take or copy company data; comply with garden-leave terms; do not solicit clients or staff in breach of a valid restraint.

Hand-offs. HRO → LM (service mode). LM → successor (handover). HRO → COSEC and FIN (authorities). LM → COM (announcements). HRO → Resourcing (requisition).

Watch. Garden leave without full benefits, forced annual leave during notice, and verbal notice with no written confirmation are the three most common Phase 2 failures, and each is cheap to avoid.



Phase 3 — Final remuneration, statutory documents and benefits

Phase 3 pays everything due, taxed correctly and on time, recovers debts only by lawful means, and gives the employee what they need to claim benefits and preserve savings. It combines core stages 4 and 5. The seven-day limit in BCEA s.32(3) is the only hard deadline in the spine: plan backwards from it.

Final remuneration

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
3.1 Calculate	T−5.	Salary to T; allowances; overtime (below the threshold); accrued and pro-rata leave (s.40); earned commission; pro-rata bonus or 13th cheque where the contract, policy or practice provides; PILON; expense claims; any settlement or ex gratia amount.	PAY, LM	T−5 to T	OB20	BCEA ss.35, 38, 40; contract
3.2 Severance	Operational requirements dismissal; termination under Insolvency Act s.38 (BCEA s.41(2)); qualifying fixed-term expiry.	At least one week's remuneration per completed year of continuous service (s.41(2)); forfeited only if the employee unreasonably refuses a reasonable offer of alternative employment (s.41(4)). Qualifying fixed-term contracts of more than 24 months (below the threshold) also attract severance (s.198B(10)), unless before expiry the employer offers or procures employment on the same or similar terms starting at expiry (s.198B(11)). Not due for incapacity unless a contract or collective agreement provides.	PAY, LA	With final pay	OB20; R30	BCEA s.41(2); LRA s.198B(10)–(11)

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
3.3 Lawful deductions	Amount owing to the employer.	PAYE and UIF (employee 1%) always. Loans, advances and bursary or training clawbacks: only with a written acknowledgement of a specified debt (s.34(1)(a)). Loss or damage: fault, a fair procedure with a reasonable opportunity to show why the deduction should not be made, an amount no higher than the actual loss, and total deductions capped at one quarter of the employee's remuneration in money (s.34(2)). Otherwise: civil claim or s.37D.	PAY, FIN, LA	Before payment	OB21	BCEA s.34
3.4 Tax directive	Severance, gratuity or other lump sum.	Apply for an IRP3(a) directive before paying. A "severance benefit" uses the retirement/severance table only if the employee is 55 or older, or the loss of employment results from retrenchment, the employer ceasing trade, ill health or disability, and in all cases the employee holds no more than 5% of the employer's shares; otherwise the amount is taxed as ordinary remuneration. Explain lifetime aggregation to the employee in writing.	PAY	Before paying the lump sum	OB22	Income Tax Act s.1 ("severance benefit"); Second and Fourth Schedules
3.5 Pay on time	Calculation signed off.	Pay within 7 days of T. If a directive is delayed, pay the undisputed amounts on time and explain the delay in writing (L8). Two-person sign-off.	PAY, FIN	By T+7	OB20	BCEA s.32(3)
3.6 Deceased employee	Death in service.	Pay s.40 amounts into the estate (executor's account) only.	PAY	When the executor is appointed	OB13	Administration of Estates Act



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
3.7 s.37D request	Employee caused loss through theft, dishonesty, fraud or misconduct.	Ask the fund in writing, before the benefit is paid out, to withhold it pending judgment or a written admission of liability. Since 1 September 2024 a compensation order under s.300 of the Criminal Procedure Act counts as a judgment (Pension Funds Amendment Act 31 of 2024; not retrospective). The fund must give the member a hearing, so start proceedings promptly.	FIN, LA	Before the fund pays; at N where loss is known	OB23	PFA s.37D(1)(b); CL: *Highveld Steel v Oosthuizen* (SCA 2008)
3.8 Tax certificates and reconciliation	Final pay run.	Issue the IRP5/IT3(a); include the exit in the EMP501 (interim in October, annual by 31 May).	PAY	Next EMP501 cycle	OB22	TAA; Fourth Schedule
3.9 Undisputed and disputed amounts	Dispute over commission, bonus or a deduction.	Pay what is not disputed on time; record the disputed item and its basis; refer to LA. Unpaid amounts below the threshold may be claimed at the CCMA (BCEA s.73A); unlawfully deducted or withheld amounts may also be claimed at the CCMA under s.73A (below the threshold), through a labour inspector's compliance order, or in court.	PAY, LA	By T+7 for undisputed	OB20	BCEA ss.34, 73A

Final-pay calculation checklist (OB20)

#	Item	Source	Check
1	Salary to T	Contract; BCEA s.35	☐
2	Overtime and allowances (if below R269,600.90)	BCEA Chapter 2	☐
3	Accrued and pro-rata leave	BCEA s.40	☐
4	Payment in lieu of notice	BCEA s.38	☐

#	Item	Source	Check
5	Commission; pro-rata bonus or 13th cheque	Plan; contract; practice	☐
6	Severance	BCEA s.41(2); LRA s.198B(10)–(11)	☐
7	Settlement or ex gratia amount; expense claims	Agreement; policy	☐
8	PAYE; UIF (employee 1%, employer 1%)	Income Tax Act; UICA	☐
9	Agreed deductions with signed acknowledgement of a specified debt	BCEA s.34(1)(a)	☐
10	Loss deductions: fault, fair procedure, capped at the loss and at one quarter of remuneration in money	BCEA s.34(2)	☐
11	IRP3(a) directive; correct table; lifetime aggregation explained	Income Tax Act Second Schedule	☐
12	Fund notified; s.37D request if applicable	Pension Funds Act	☐
13	Paid within 7 days; any delay explained in writing	BCEA s.32(3)	☐
14	Payslip; IRP5; EMP501	TAA; Fourth Schedule	☐
15	Deceased employee: estate account only	Administration of Estates Act	☐
16	Two-person sign-off	Internal control	☐

Statutory documents, benefits and notifications

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
3.10 Certificate of service	Every termination.	Issue with the contents in L12. The reason for termination appears only if the employee asks. Never withhold it: enforcement is usually by a labour inspector's compliance order.	HRO	At T	OB24	BCEA s.42



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
3.11 UIF declaration	Termination.	Declare the termination (UI-19 data with the reason code) by the 7th of the following month on the employer portal in use (uFiling until the announced migration to UIF Online is confirmed) or through payroll; keep proof. Supply the UI-2.8 or UI-2.7 when requested. Tell the employee that claims are made on UIF Online (the legacy uFiling employee-claims portal closed on 20 May 2026). Resignation normally disqualifies an employee from unemployment benefits.	PAY, HRO	By the 7th of the following month	OB25	UIA; UICA; DEL statement, 25 May 2026
3.12 COIDA	Open claim, or work-related death or disease.	Injury and disease claims continue after exit; keep the claim open and cooperate (link: GBS COIDA flow). For a death at work, notify the DEL provincial director immediately and report on W.Cl.2 within 7 days (OHS Act s.24; GAR reg 8; link: GBS OHSA flow), and report the accident to the Compensation Commissioner within 7 days (COIDA s.39(1)).	HRO, OHP	Ongoing; death at work: DEL immediately; W.Cl.2 and COIDA report within 7 days	COIDA flow	COIDA s.39; OHS Act s.24; GAR reg 8
3.13 Retirement fund	Termination.	Notify the administrator (usually within 30 days). Explain the options in the two-pot sheet: preserve or transfer tax-free; take the vested component in cash (withdrawal table); one savings-component withdrawal per tax year (at least R2,000, taxed at the marginal rate); the retirement component stays locked until retirement.	BEN	Within 30 days (fund rules)	OB26	Pension Funds Act; Pension Funds Amendment Act 31 of 2024; Revenue Laws Amendment Act, 2024

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
3.14 Medical scheme	Termination.	Stop the employer subsidy at T. Continuation membership is available for retirees, employees who leave because of age, ill health or disability, and surviving dependants. Retrenchees in restricted schemes usually lose eligibility: warn them about late-joiner penalties.	BEN	Before T	OB26	Medical Schemes Act s.29(1)(s)–(t); scheme rules
3.15 Group risk	Termination.	Give written notice of continuation or conversion options and their deadlines (often 30–60 days, depending on the policy).	BEN	Before T	OB26	Policy terms
3.16 Exit medicals	Employee under medical surveillance (noise, asbestos, hazardous chemical agents, mining).	Book the exit examination and hand over copies of the employee's records.	OHP	At or before T	OB27	OHS Act regulations; MHSA
3.17 References	Reference request.	Dates, title and pay only, unless the employee consents in writing to more. Anything said must be truthful.	HRO	On request	OB28	POPIA ss.11, 18; common law
3.18 Foreign nationals and TES workers	Exit of a foreign national or placed worker.	Record the end of employment for the right-to-work file; tell the TES or client as the contract requires.	HRO	At T	RS37; RS38	Immigration Act; LRA s.198



Statutory documents and forms checklist

Document	Basis	Deadline	Owner	Form
Acknowledgement of resignation / notice of termination	BCEA s.37	Within 48 hours of N (BP)	HRO	OB06; OB12
s.189(3) notice (Annexure A)	LRA; Code	At the start of consultation	LA	Op Req R-series
Final payment	BCEA ss.32(3), 40	Within 7 days of T	PAY	OB20
IRP3(a) directive	Income Tax Act	Before paying severance	PAY	OB22
Certificate of service	BCEA s.42	At T	HRO	OB24
UIF termination declaration	UIA; UICA	By the 7th of the following month	PAY	OB25
UI-2.8 / UI-2.7	UIA	On request	HRO	OB25
Fund withdrawal or death notification	Fund rules	Usually within 30 days	BEN	OB26
Medical scheme and group-risk notices	MSA; policy	Before T	BEN	OB26
OHSA s.24 notice and COIDA report	OHS Act s.24; GAR reg 8; COIDA s.39	Death: DEL immediately; W.Cl.2 and COIDA report within 7 days	HRO, OHP	COIDA flow
Exit medical	OHS Act; MHSA	At or before T	OHP	OB27
IRP5; EMP501	TAA	October interim / 31 May annual	PAY	OB22
EEA2 terminations and EEA4	EEA s.21	1 Sept 2026 – 15 Jan 2027 (online)	EEM	OB40
CoR39	Companies Act s.70(6)	Within 10 business days	COSEC	OB19

Employee obligations at this stage. Provide current bank details and any fund election on time; return any signed acknowledgement of debt; claim UIF on UIF Online; tell the employer of any error in the final pay or certificate promptly.



Hand-offs. PAY → SARS (directive, EMP501). PAY → UIF (declaration). BEN → fund, medical scheme and insurer. HRO → COIDA flow. FIN → fund (s.37D). OHP → employee (records).

Watch. Withholding all pay until a laptop comes back is the classic Phase 3 error. It turns a recoverable property claim into an unlawful deduction and a BCEA compliance order.



Phase 4 — Property, access and restraint

Phase 4 recovers assets in a documented and dignified way, removes access at a time set by risk, and protects legitimate interests with restraints that can be enforced. It combines core stages 6, 7 and 8. The risk tier is set at the legal gate (step 1.8).

Risk tiers for deprovisioning

Risk tier	Examples	Revocation timing	Extras
High	Summary or misconduct dismissal; privileged IT or finance users; a move to a competitor; immediate-effect resignation	During the notification meeting; escorted exit; garden leave	Litigation hold; DLP review; supervised handover
Medium	Resignation to a competitor; performance dismissal	Reduce privileges at N; full revocation at T	DLP review; restraint reminder at N
Standard	Retirement; amicable resignation; contract expiry	Close of business on T	Standard checklist

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
4.1 Reconcile assets	T−5.	Reconcile against the asset register: laptops, phones and MFA tokens; vehicles and fuel cards; credit and purchase cards; access cards and keys; PPE and tools; files and drives.	LM, FAC, IT	T−5 to T	OB29	BP
4.2 Return and acknowledge	Items returned.	Signed return acknowledgement; photograph high-value items; prepaid courier for remote staff. No confrontational searches.	FAC, LM	By T	OB29	BP; Constitution s.14

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
4.3 Unreturned property	Item outstanding at T.	Written demand (L10). Deduct only within s.34; otherwise sue, or lay a criminal complaint where theft is evident. Never withhold final pay as leverage.	FIN, LA	T+1	OB29	BCEA s.34
4.4 Vehicles and accommodation	Company vehicle or employer accommodation.	Close vehicle fringe benefits in payroll; where the employer terminates the contract of an employee living in employer-provided accommodation without giving the full s.37 notice, or by payment in lieu under s.38, it must provide the accommodation for one month or, if longer, until the contract could lawfully have ended (BCEA s.39(1)); if the employee stays after a s.38 termination, the payment in lieu is reduced by the agreed value of the accommodation (s.39(2)).	PAY, FAC	At T	OB29	BCEA s.39; Income Tax Act Seventh Schedule
4.5 Revoke access	Per risk tier.	Disable single sign-on, VPN, email, cloud, CRM and ERP access, admin rights and API keys. Rotate shared credentials; wipe corporate containers on devices; remove from distribution lists, groups and building access.	IT, SEC	Per tier	OB30	POPIA s.19
4.6 Mail handling	Revocation.	Auto-reply naming the new contact for 30–90 days. Forward mail to the manager only for a limited, policy-based period, never to the former employee.	IT	At revocation	OB30	POPIA; policy
4.7 Litigation hold	Dispute likely (dispute-risk rating at 1.8).	Place a hold on the mailbox and files; do not delete a mailbox before a hearing or referral window closes.	LA, IT	At N for high tier	OB31	Common law (evidence); BP



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
4.8 DLP review	Medium or high tier.	Review data-loss-prevention logs for the 30–60 days before N, within the IT policy and lawful monitoring consents; refer findings to LA.	SEC, LA	Before T	OB30	RICA; POPIA
4.9 Data deletion confirmation	Before T.	Employee confirms in writing that company data has been deleted from personal devices and accounts.	HRO, IT	By T	OB30	POPIA s.19; contract
4.10 Restraint review	Restraint or confidentiality clause exists.	Apply the *Basson v Chilwan* enquiry: is there an interest worth protecting (confidential information or trade connections); is it threatened; does it outweigh the employee's interest in being economically active; does any other public-policy factor apply? The employer must show the protectable interest; a signed restraint alone is not enough.	LA, LM	N to T	OB32	CL: *Basson v Chilwan* (AD 1993); *Magna Alloys v Ellis* (AD 1984); *Truworths v Nxasana* (WCC 2025)
4.11 Decide: enforce or waive	Review complete.	Record the decision and reasons. Where waiving, say so in writing to avoid later arguments. Consider whether garden leave should count towards the restraint period (BP).	LA	By T	OB32	CL: *Reddy v Siemens* (SCA 2007)
4.12 Restraint reminder	Exit pack.	Send the neutral reminder letter (L11).	HRO	With the exit pack	OB32	BP
4.13 Breach	Evidence of breach after T.	Act promptly: delay undermines the urgency needed for an interdict. Onus: the person challenging the restraint proves it is unreasonable; reasonableness is judged when enforcement is sought. Courts may enforce a restraint in part.	LA	Within days of discovery	Litigation file	CL: *Magna Alloys*; *Reddy v Siemens*

Employee obligations at this stage. Return all property by T; delete company data and confirm in writing; do not access systems after revocation; comply with a valid restraint and with confidentiality duties, which survive termination.

Hand-offs. HRO → IT and SEC (tier and timing). LM → FAC (asset list). FIN → LA (unreturned property). LA → IT (litigation hold). LA → employee (restraint).

Watch. Boilerplate national restraints for junior staff rarely survive a challenge, and a restraint the employer does not act on quickly may not survive at all. Decide at T, not when the competitor's press release appears.



Phase 5 — Exit interview, records and closure

Phase 5 captures honest reasons for leaving, detects risks the employer must act on, closes the systems and records, and decides how the relationship continues. It combines core stages 9, 11 and 12.

Exit interview and post-exit survey

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
5.1 Invite	T fixed.	Offer the interview as voluntary and confidential; explain how data is aggregated; give the POPIA notice; get consent before collecting special personal information volunteered in the interview (health, sex life, religion). Race for EE coding already has a lawful basis and does not need fresh consent.	EXI	With L1 or L6	OB33	POPIA ss.11, 18, 26–27, 29 (verify)
5.2 Choose the interviewer	Accepted.	Neutral HR (not the HR business partner who handled the exit) or a third party for key talent, designated-group employees and contentious exits. Never the leaver's own manager or anyone who will write a reference. Spain and Groysberg (HBR 2016) favour second- or third-line managers; the CIPD advises against the responsible manager and notes that external providers capture more accurate data.	HRO	T−10	OB33	BP

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
5.3 Conduct	T−10 to T−2.	Semi-structured, about 40 minutes, using the guide below: rated items for trends plus open prompts. Hold it once final pay amounts are confirmed so the employee is not anxious about money. Confirm that nothing said affects pay, references or the certificate.	EXI	T−10 to T−2	OB33	BP
5.4 Mandatory triage	Any disclosure of harassment, fraud, corruption or a safety issue.	Within 48 hours: harassment → Harassment Code procedure; fraud or corruption → PDA or whistle-blowing route (link: GBS PDA flow intake F01); safety → OHS. Act even though the employee is leaving: an employer that knows of harassment and fails to act risks EEA s.60 liability.	EXI, ERO, LA	Within 48 hours	OB34	EEA s.60; Harassment Code (2022); PDA; OHS Act
5.5 Code and store	Interview complete.	Code reasons against the fixed list (0.9); separate regrettable from non-regrettable exits; store identifiable data with access restricted to EXI and HRA.	EXI, HRA	Within 5 working days	OB33	POPIA s.19
5.6 Post-exit survey	T+30.	Short survey (eight items below) with an option to answer anonymously.	HRA	T+30 to T+90	OB35	BP
5.7 Report	Quarterly.	Aggregates only, with no group smaller than five, by unit, manager, occupational level and designated group; anonymise identifiable data after the defined period (BP: 2 years).	HRA, EEM	Quarterly	OB40	POPIA ss.14, 26–27

Exit interview guide (about 40 minutes)

Opening. Purpose; voluntary and confidential; how data is aggregated; POPIA notice; nothing said affects pay, references or the certificate; disclosures of misconduct or harassment will be referred for action.



Section	Prompts
A. Decision	What was the main reason, and what else contributed? When did you first think about leaving? Could anything have changed your mind? Did anyone ask what it would take for you to stay?
B. Role	Did the job match how it was described? How were workload, resources and flexibility?
C. Manager and leadership	Appreciation, feedback, direction and development. How well was the vision communicated?
D. Growth and reward	Progression; fairness of pay for equal work; transparency of decisions.
E. Inclusion and EE barriers (for EEA12)	Belonging; any barriers linked to race, gender, disability or other grounds; any harassment (goes to triage); reasonable accommodation.
F. Destination (optional)	What the new role offers that this one did not. No confidential information.
G. Close	eNPS (0–10); would you return; anything else for leadership.

Post-exit survey (T+30 to T+90, eight items). 1. Real main reason for leaving (from the reason list). 2. How candid you were at the exit interview (1–5), and why. 3. How the exit was handled: pay, documents, dignity. 4. How the new employer compares on your main reason. 5. The one change that would have kept you. 6. Likelihood of returning. 7. Likelihood of recommending us. 8. Permission to contact you.

Why stay interviews matter more. Gallup's July 2024 study of 717 US employees who had voluntarily left in the previous 12 months found that 42% said their departure could have been prevented, and 45% said that no manager or leader had proactively discussed their satisfaction, performance or future in the three months before they left (an earlier Gallup study reported a higher preventability figure; verify before quoting). Exit interviews explain losses; stay interviews (step 0.13) prevent them.

Records, retention and system closure

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
5.8 Close the HRIS	T.	Close the record with the reason code aligned to the EEA2 and UIF categories (0.10); end-date all entitlements; confirm payroll is closed.	HRO, PAY	T to T+5	OB37	EEA s.21; UIA
5.9 Tag retention	File closed.	Tag each record type with its destruction date using the schedule below.	HRO	By T+30	OB37	POPIA s.14
5.10 Complete the exit file	All stages done.	File index: gate record; letters; final-pay schedule; certificate; UIF proof; benefit notices; asset and access checklists; restraint decision; interview triage record; per-exit compliance checklist (OB41).	HRO	By T+30	OB41	BP (the file is the employer's evidence)
5.11 Secure destruction	Destruction date reached.	Destroy records securely at the end of the retention period, unless a dispute or legal hold is open.	HRO, IO	On schedule	OB37	POPIA s.14(4)

Record	Basis	Minimum retention
Time, remuneration and leave records	BCEA s.31	3 years
Payroll, PAYE, IRP5, directives, EMP501	TAA s.29	5 years from submission
UIF declarations	UIA / UICA (align with TAA)	5 years (recommended)
COIDA claims and registers	COIDA	Life of the claim + 5 years (recommended)
EE records (EEA2, EEA4, plans, consultation)	EEA s.26 and Regulations	As prescribed; 5 years recommended
Disciplinary, incapacity and s.189 files	LRA (evidence)	5 years recommended



Record	Basis	Minimum retention
Occupational health surveillance	OHS Act / MHSA regulations	Regulation-specific (often decades)
Exit interview data that identifies individuals	POPIA s.14	2 years, then anonymise

Alumni, rehire and boomerangs

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
5.12 Rehire eligibility	File closed.	Record eligible, eligible with conditions, or not eligible, with an objective reason. It must never rest on a prohibited ground or on the employee having referred a CCMA dispute (victimisation risk).	HRO, LA	By T+30	OB38	LRA s.5; EEA s.6
5.13 Alumni network	Voluntary exit.	Invite with consent; electronic marketing to alumni needs opt-in consent.	HRO	T to T+12 months	OB38	POPIA s.69
5.14 Re-employment preference	Retrenchee covered by an agreement.	Keep the preference register and offer vacancies as agreed (link: Op Req R32).	HRO	Per agreement	R32	LRA s.189(3)(h); agreement
5.15 Boomerang hires	Former employee re-hired.	Confirm in writing how prior service is treated (continuity, leave, severance, probation).	HRO, LA	At offer	RS35	BCEA s.84 (verify); BP

Employee obligations at this stage. None required; the interview is voluntary. Where the employee discloses misconduct or harassment, they may be asked to cooperate with the triage process as a witness or complainant.

Hand-offs. EXI → ERO, PDA Designated Officer or OHS (triage). HRA → EEM (EEA2, EEA12). HRO → IO (retention). HRO → Resourcing (boomerang).



Watch. Exit data collected and never acted on is worse than none: it creates a record of known problems. Every triage item must close with a documented action.



Phase 6 — Governance, monitoring and learning

Phase 6 turns individual exits into EE, retention and control improvements. None of it has a statutory deadline except the EE reporting cycle, so it must be fixed in policy or it will be skipped.

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
6.1 Turnover dashboard	Quarterly.	Voluntary, involuntary and regrettable turnover; first-year and probation attrition; turnover by designated group and occupational level against EE targets; time to fill; exit and stay themes; attrition hot-spots by manager.	HRA, HRO	Quarterly	OB40	BP
6.2 Compliance rates	Quarterly.	Final pay within 7 days; certificates issued; UIF declared by the 7th; access revoked within SLA; assets recovered; gate signed before letter; disputes and outcomes by exit type.	HRO	Quarterly	OB40	BCEA ss.32(3), 42; UIA
6.3 EE reporting	Reporting cycle.	Feed terminations by designated group into EEA2 and EEA4; where designated-group attrition erodes progress against targets, document the barrier analysis and retention measures in the EEA12 and the EE plan before 15 January 2027.	EEM	1 Sept 2026 – 15 Jan 2027	OB40	EEA ss.19–21; EE Regulations 2025
6.4 Reporting to EXCO and the EE committee	Quarterly.	Aggregate report with actions and owners; follow-up on every triage theme.	HRO, EEM	Quarterly	OB40	Governance
6.5 Root cause	Any lost dispute; any compliance miss.	Identify which control failed (gate, notice, pay, documents, access, restraint) and fix the control, not only the case.	HRO, LA	Within 30 days (BP)	OB39	BP

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
6.6 Annual audit	Annually.	Audit the process against this flow, using the SABPP HR Risk Management standard's systematic approach to identifying and addressing people risks (GBS mapping).	HRO, internal audit	Annually	OB42	SABPP standards (GBS mapping)
6.7 Legislative watch	Ongoing.	Track: Code amendments and case law; UIF Online migration of employer services; two-pot retrenchment-access proposals; the Protected Disclosures Bill, 2026; annual changes to the threshold, minimum wage, UIF ceiling and tax tables; s.37D practice after the 2024 amendment.	LA	Ongoing	Change log	LRA s.203



Parallel track — dispute risk and settlement

This track opens at N and runs until the last referral window closes (about six months for discrimination claims). Its events are triggered by what the employee does, not by the exit timeline. The dispute-risk rating recorded at the legal gate decides how actively it is managed.

Event	Trigger	Organisational action	Deadline	Form	Authority
P1 Rate dispute risk	Legal gate signed.	Rate low, medium or high by branch and flags (tainted resignation, dismissal, non-renewal, retirement without proven age, discloser, designated group). High: litigation hold, LA owner, settlement consideration.	At 1.8	OB39	BP
P2 Unfair dismissal referral	Employee refers (including constructive dismissal and non-renewal).	Diarise; brief LA; assemble the exit file; attend conciliation or con-arb; consider settlement.	Employee within 30 days of dismissal or, if later, of the final decision to dismiss or uphold the dismissal on appeal	OB39; D36; I36; R33	LRA s.191(1)(b)(i)
P3 Constructive dismissal	Employee resigns alleging intolerable conditions.	The employee must prove objective intolerability and that resigning was a last resort. The step 1.4 grievance offer and record is the defence.	Employee within 30 days	OB07; OB39	LRA s.186(1)(e); CL: *Loots*; *Mvumbi*
P4 Unfair labour practice	Dispute about benefits, probation, suspension or other conduct before the exit.	Respond with the contemporaneous record.	Employee within 90 days	OB39	LRA ss.186(2), 191(1)(b)(ii)

Event	Trigger	Organisational action	Deadline	Form	Authority
P5 Unfair discrimination	Claim linked to a listed or arbitrary ground.	LA review; exit interview and EE records may be relevant; the employer carries the onus once discrimination is alleged.	Employee within 6 months	OB39	EEA ss.10, 11
P6 Unpaid amounts	Claim for final pay, leave or commission.	Pay any undisputed amount at once; respond with the final-pay schedule.	No fixed s.73A period: refer within a reasonable time; debts older than 3 years may have prescribed (Prescription Act s.11(d))	OB20	BCEA s.73A
P7 Deduction dispute	Employee challenges a s.34 deduction.	Produce the acknowledgement of debt or the loss-deduction record; refund if either is missing.	Per forum	OB21	BCEA ss.34, 69, 73A
P8 Restraint challenge or breach	Employee seeks a declarator, or breaches.	LA; urgent interdict only with prompt action and evidence of the protectable interest.	Days	OB32	CL: *Basson v Chilwan*; *Truworths v Nxasana*
P9 Settlement	Settlement proposed.	Full and final settlement of known and unknown claims arising from the employment and its termination, carving out vested fund benefits and COIDA; independent-advice acknowledgement; reflection period; where the CCMA could arbitrate the dispute, make it an arbitration award under s.142A so it can be enforced.	Before any hearing	OB11	LRA s.142A
P10 Review of an award	Arbitration award.	Comply, or apply for review.	Within 6 weeks of the award	Litigation file	LRA s.145
P11 Protected disclosure after exit	Former employee discloses, or alleges detriment.	Run the PDA flow; occupational detriment protections can extend to references and rehire decisions.	On receipt	PDA flow	PDA; DRAFT Bill 2026



Event	Trigger	Organisational action	Deadline	Form	Authority
P12 Harassment disclosed at exit	Triage at 5.4.	Investigate and act under the Harassment Code even though the complainant has left.	Within 48 hours to start	OB34	EEA s.60; Harassment Code



Employee obligations and conduct

An employee protects their own position by giving proper notice, handing over, returning property and respecting valid post-employment duties. The organisation should explain these duties in the acknowledgement letter and the exit pack, without using them to discourage a claim.

Obligation	When	Consequence if not met	Authority
Give written notice of at least the contractual or BCEA period	On resigning	Breach of contract; damages claim; shortfall deductible only under s.34	BCEA s.37
Raise a grievance before resigning over the employer's conduct	Before resigning	Weakens any constructive-dismissal claim	CL: *Loots*
Work the notice period, or comply with garden-leave terms	N to T	Misconduct during notice; breach	Contract; BCEA s.38
Hand over work, credentials and documents	N to T−2	Misconduct; damages	Contract; BP
Return all company property and confirm deletion of company data	By T	Written demand; civil claim; criminal complaint where theft is evident	Common law; POPIA s.19
Not access company systems after revocation	After revocation	Unauthorised access offence	Cybercrimes Act 19 of 2020 s.2 (verify)
Respect confidentiality and any valid restraint	After T	Interdict; damages	Common law; contract
Provide bank details, fund elections and documents on time	Before T+7	Payment or benefit delays	Fund rules; BP
Refer any dispute in time	30 days; 90 days; 6 months	Condonation needed	LRA s.191; EEA s.10

Rights the organisation must not obstruct. Final pay within 7 days; no deductions outside s.34; a certificate of service, with no reason stated unless requested; the UIF declaration and documents needed to claim; information on fund, medical scheme and group-risk options; no annual leave imposed during notice; a truthful and minimal reference; confidentiality of exit-interview data; access and correction of personal information under POPIA; freedom from victimisation for referring a dispute; referral to the CCMA, a bargaining council or the Labour Court.



Hand-offs, RACI and interfaces register

RACI matrix

R = Responsible, A = Accountable, C = Consulted, I = Informed. One A per stage.

Stage	LM	HRO	PAY	IT	SEC	FAC	FIN	LA	BEN	EEM
1 Trigger / legal gate	R	A	I	I	C	–	I	R	–	I
2 Notice	C	A/R	C	–	–	–	–	C	–	–
3 Handover	A/R	C	–	C	–	–	C	C	–	–
4 Final pay	C	A	R	–	–	–	C	C	C	–
5 Documents / benefits	–	A/R	R	–	–	–	–	C	R	–
6 Assets	R	A	I	R	C	R	R	C	–	–
7 Deprovisioning	I	A	–	R	R	C	–	C	–	–
8 Restraint	C	R	–	C	–	–	–	A	–	–
9 Exit interview	I	A/R	–	–	–	–	–	C	–	C
10 Communication	R	A	–	–	–	–	–	C	–	–
11 Records	–	A	R	R	–	–	C	C	C	R
12 Alumni / rehire	C	A/R	–	–	–	–	–	C	–	I
13 Disputes	C	R	C	–	–	–	C	A	–	I

Stage	LM	HRO	PAY	IT	SEC	FAC	FIN	LA	BEN	EEM
14 Metrics	C	A/R	–	–	–	–	–	I	–	R

Interfaces register

Every hand-off carries a deadline or privacy risk: send the minimum, keep proof of what was sent, to whom and when, and record it against the exit file.

Party or system	Trigger	What is handed over	When	Step	Authority
GBS Misconduct / Incapacity / Op Req flows	Employer-initiated exit	Outcome and record; gate check result; HOLD where incomplete	Before the notice	1.6	Code
GBS Resourcing flow	Vacancy created; boomerang	Requisition; prior-service terms; asset register feed (RS39)	N; at rehire	0.4, 2.10, 5.15	BP
GBS COIDA flow	Open claim; work death	Claim status; death report	Ongoing; death at work: DEL immediately (OHSA s.24)	1.12, 3.12	COIDA; OHS Act s.24
GBS PDA flow	Disclosure at exit or before	Intake (F01); discloser flag	Within 48 hours	1.7, 5.4, P11	PDA
GBS AARTO flow	Driver or proxy leaves	Remove from drivers register; replace proxy on eNaTIS; close allocation	By T	2.11	AARTO Act s.17(5)
SARS	Lump sum; tax year end	IRP3(a); IRP5; EMP501	Before payment; cycles	3.4, 3.8	Income Tax Act; TAA
UIF (uFiling / UIF Online)	Termination	Declaration by the 7th; UI-2.8 / UI-2.7 on request	By the 7th	3.11	UIA; UICA



Party or system	Trigger	What is handed over	When	Step	Authority
Retirement fund / administrator	Termination; death; loss	Withdrawal or death notification; s.37D request	Within 30 days; before payout	3.7, 3.13	PFA ss.37C, 37D
Medical scheme; group-risk insurer	Termination	Membership end; continuation and conversion notices	Before T	3.14–3.15	MSA; policy
CIPC	Director leaves	CoR39	Within 10 business days	2.11	Companies Act s.70(6)
Trustee or liquidator	Insolvency	Employee list; consultation	On the order	1.13	Insolvency Act s.38
TES or client	Placed worker exit	End notice; deeming check	Before T	1.10, 3.18	LRA ss.198, 198A
Executor and next of kin	Death	Single contact; estate payments; benefits guidance	Same day contact	1.12, 3.6	Administration of Estates Act
Exit interview provider	Third-party interview	Minimum personal information under an operator agreement	T−10	5.2	POPIA ss.20–21
CCMA / bargaining council / Labour Court	Referral	Response pack; settlement for s.142A	Per notice	P2–P10	LRA ss.142A, 191
EXCO / EE committee	Quarterly	Aggregate dashboard; triage themes; EE barriers	Quarterly	6.4	Governance; EEA



Forms register

Forty-two forms support the flow. Where the Misconduct, Incapacity, Operational Requirements or Resourcing flows already contain a related form, it is shown so that one master replaces the duplicates (see section 15). Only the certificate of service contents and the UIF declarations are prescribed by law.

Form	Name	Used at	Existing GBS form or template
OB01	Off-boarding policy and procedure	0.1, 6.6	—
OB02	Off-boarding RACI and delegation matrix	0.2	—
OB03	Asset and access register (from onboarding)	0.4, 4.1	RS39 (add asset and access section)
OB04	Exit notification form, exit file index and clock tracker	1.1–1.2, 2.8	—
OB05	Legal gate checklist and record (A record check; B s.187 screen; reason code, branch, risk tier, EE flag, dispute rating)	1.6–1.8	—
OB06	Acknowledgement of resignation (L1)	1.3	—
OB07	Grievance-route offer letter (L2)	1.4, P3	—
OB08	Retraction decision record (L3)	1.5	—
OB09	Retirement notice and fixed-term stay-on agreement (L4)	1.9	—
OB10	Fixed-term non-renewal letter (L5)	1.10, 2.7	RS36 (contract side)
OB11	Mutual separation and settlement agreement with s.142A consent	0.12, 1.11, P9	—
OB12	Notice of termination — common block (L6)	1.8; with the outcome	D30; I32; R29 (align to this block)

Form	Name	Used at	Existing GBS form or template
OB13	Death-in-service protocol pack	1.12, 2.16, 3.6	COIDA flow (work deaths)
OB14	Insolvency employee notice and UIF guidance	1.13	—
OB15	s.197 transfer schedule (not an exit)	1.14	—
OB16	Abscondment contact log, ultimatum and hearing notice	1.15	Misconduct flow notice forms
OB17	Notice and service-mode letter (L7)	2.1–2.6	—
OB18	Handover plan	2.9–2.12	—
OB19	Authorities register and withdrawal checklist (incl. CoR39)	0.7, 2.11	AARTO G09 (proxy)
OB20	Final-pay calculation, checklist and two-person sign-off; final-pay schedule (L8)	0.5, 3.1–3.9	R30 (severance)
OB21	Acknowledgement of specified debt and loss-deduction procedure record	3.3, P7	AARTO G10 (consent clause)
OB22	Tax directive log and lump-sum explanation note; IRP5/EMP501 check	3.4, 3.8	—
OB23	s.37D withholding request to the fund	3.7	—
OB24	Certificate of service (L12)	3.10	Content prescribed by BCEA s.42
OB25	UIF declaration record and employee UIF Online guidance sheet	3.11	UIF declarations prescribed
OB26	Benefits exit pack: fund options, two-pot briefing sheet, medical scheme and group-risk notices (L9)	0.6, 3.13–3.15	R04 (map)
OB27	Exit medical referral and records hand-over	3.16	—
OB28	Reference policy and consent to an extended reference	3.17	—
OB29	Property return acknowledgement and written demand (L10)	4.1–4.4	D31; I34; R31 (property lines)



Form	Name	Used at	Existing GBS form or template
OB30	Deprovisioning ticket, risk-tier checklist, DLP review note and data-deletion confirmation	0.8, 4.5–4.9	—
OB31	Litigation hold notice	4.7	—
OB32	Restraint review, enforce-or-waive decision and reminder letter (L11)	4.10–4.13, P8	—
OB33	Exit interview guide, POPIA notice and coding sheet	0.9, 5.1–5.5	—
OB34	48-hour disclosure triage record	5.4, P12	PDA F01 (intake)
OB35	Post-exit survey	5.6	—
OB36	Communication templates: internal announcement and client transition letter	2.13–2.14	—
OB37	Reason-code table, records closure and retention tagging record	0.10–0.11, 5.8–5.11	—
OB38	Rehire eligibility record and alumni consent	5.12–5.13	—
OB39	Dispute-risk rating and response pack	P1–P10, 6.5	D36; I36; R33
OB40	Off-boarding dashboard and EE termination analysis (EEA2 / EEA12 feed)	5.7, 6.1–6.4	RS42 (retention of appointees)
OB41	Per-exit compliance checklist (master termination checklist)	5.10	Replaces D31, I34 and R31
OB42	Annual off-boarding process audit	6.6	—

Per-exit compliance checklist (OB41)

#	Check	Step	Done
1	Reason verified; legal gate signed for dismissals and flagged resignations	1.6–1.8	☐
2	Code (2025) procedure documented in the source flow	1.6	☐



#	Check	Step	Done
3	Notice complies with s.37 or the contract, in writing; no leave taken during notice	2.1–2.3	☐
4	Handover done; mandates and appointments withdrawn	2.9–2.11	☐
5	Final pay signed off by two people and paid within 7 days; deductions within s.34 only	3.1–3.5	☐
6	Tax directive obtained; correct table applied; severance paid where due	3.2, 3.4	☐
7	Certificate of service issued (reason only on request)	3.10	☐
8	UIF declared by the 7th; employee pointed to UIF Online	3.11	☐
9	Fund notified; two-pot options explained; s.37D considered	3.7, 3.13	☐
10	Medical scheme and group-risk continuation options communicated in writing	3.14–3.15	☐
11	COIDA and exit medicals addressed	3.12, 3.16	☐
12	Assets recovered or demand issued; no unlawful set-off	4.1–4.3	☐
13	Access revoked according to risk tier; litigation hold if needed	4.5–4.7	☐
14	Restraint reviewed; decision recorded; reminder sent	4.10–4.12	☐
15	Exit interview offered; disclosures triaged within 48 hours; survey scheduled	5.1–5.6	☐
16	Neutral, non-defamatory communications	2.13–2.16	☐
17	HRIS and payroll closed with aligned reason codes; retention periods tagged	5.8–5.9	☐
18	Rehire eligibility recorded; dispute risk rated	5.12, P1	☐
19	Exit captured in turnover and EE dashboards	6.1–6.3	☐



Timeline calendar and liability register

With internal targets adopted as policy, a routine exit with four weeks' notice closes its administration about a month after T. Only final pay, the UIF declaration, certain filings and the referral windows are statutory; everything else is policy and must be written into the off-boarding policy to bind.

Exit calendar

When	Event	Owner	Authority	Type
N (same day)	Log trigger; open file; freeze; flags; high-tier revocation	HRO, IT	—	BP
N + 48 hours	Acknowledgement of resignation	HRO	BCEA s.37	BP
N + 2 working days	Constructive-dismissal screen; gate signed; notice, service mode and T confirmed	HRO, LA	LRA s.186(1)(e)	BP
N + 3 working days	Handover plan agreed	LM	—	BP
Before T; one notice period before expiry	Fixed-term non-renewal letter	HRO	LRA s.186(1)(b)	BP
3–6 months before retirement date	Retirement notice	HRO	LRA s.187(2)(b)	BP
T − 10 to T − 2	Exit interview	EXI	—	BP
T − 5 to T	Final-pay calculation; asset reconciliation; benefits pack	PAY, FAC, BEN	—	BP
T	Certificate of service; standard-tier revocation; property returned; data-deletion confirmation	HRO, IT	BCEA s.42	Statutory (certificate)

When	Event	Owner	Authority	Type
T + 1	Written demand for unreturned property	FIN	—	BP
T + 7	Final pay (undisputed amounts at least)	PAY	BCEA s.32(3)	Statutory
7th of the following month	UIF termination declaration	PAY	UIA; UICA	Statutory
Within 10 business days of the change	CoR39 for a departing director	COSEC	Companies Act s.70(6)	Statutory
Within 48 hours of any disclosure	Triage to the Harassment Code, PDA or OHS route	EXI, ERO	EEA s.60	BP
T + 14	Statutory documents and benefit notices complete	HRO, BEN	—	BP
T + 30	Exit file complete; retention tagged; rehire flag; fund notified	HRO, BEN	Fund rules	BP
Dismissal (or, if later, final appeal decision) + 30 days	Last day to refer an unfair dismissal dispute	EMP	LRA s.191(1)(b)(i)	Statutory
T + 30 to T + 90	Post-exit survey	HRA	—	BP
Act + 90 days	Last day to refer an unfair labour practice	EMP	LRA s.191(1)(b)(ii)	Statutory
Award + 6 weeks	Review application	LA	LRA s.145	Statutory
Act + 6 months	Last day to refer an unfair discrimination dispute	EMP	EEA s.10	Statutory
Death + up to 12 months	Fund allocates death benefit	FUND	PFA s.37C	Statutory
Final trustee appointment + 45 days	Suspended contracts end unless continued employment is agreed	TRU	Insolvency Act s.38(9)	Statutory
Quarterly	Dashboard to EXCO and the EE committee	HRO, EEM	—	BP
1 Sept 2026 – 15 Jan 2027	EE reporting cycle (EEA2, EEA4)	EEM	EEA s.21	Statutory



Liability register

Exposure	Who is exposed	Consequence	Authority
Mislabelled exit that is in law a dismissal (tainted resignation, unproven retirement age, expected renewal, abscondment without process)	Employer	Reinstatement, re-employment or compensation up to 12 months' remuneration	LRA ss.186, 193, 194(1)
Automatically unfair dismissal (age outside s.187(2)(b), protected disclosure, transfer, pregnancy, union activity)	Employer	Compensation up to 24 months' remuneration	LRA ss.187, 194(3)
Late final pay	Employer	Compliance order; interest; CCMA claim below the threshold	BCEA ss.32(3), 69, 73A, 75
Unlawful deduction or set-off from final pay	Employer	Repayment; compliance order	BCEA s.34
Failure to issue a certificate of service	Employer	Compliance order	BCEA ss.42, 69
Late or missing UIF declaration	Employer	Employee's claim blocked; penalties and interest	UIA; UICA (verify)
Failure to pay severance	Employer	Compliance order; payment with interest	BCEA ss.41(6)–(9), 69, 75
Wrong tax table or no directive	Employer	Under-deduction liability; penalties	Income Tax Act Fourth Schedule; TAA
Failing to act on harassment disclosed at exit	Employer	Liability for the harasser's conduct	EEA s.60
Defamatory announcement or reference	Employer and the person speaking	Damages	Common law
Disclosure of exit or health data beyond what is necessary	Responsible party	Administrative fine; civil claim	POPIA ss.99, 109 (verify)
Rehire refusal because of a CCMA referral	Employer	Victimisation claim	LRA s.5



Exposure	Who is exposed	Consequence	Authority
Unauthorised system access by a former employee	Former employee	Offence	Cybercrimes Act s.2 (verify)



Source review, corrections to existing GBS materials and drafting issues

The GBS Off-Boarding Framework was checked against the statutes, the case law it cites and a currency search on 30 September 2026 (re-verified in an independent V&V review on 19 October 2026; see the revision history at the end of this section), and against the other GBS flows. This flow already reflects every point below. Several are refinements rather than errors; they are listed so that the Framework and the other flows can be brought into line.

Refinements to the source Framework

#	Framework statement	Where	Refinement
1	Loss or damage deductions capped at "one quarter of net pay" / "25% of net pay"	Key Findings 3; Stage 4	BCEA s.34(2)(d) caps total deductions at one quarter of the employee's "remuneration in money". Use the statutory wording; treat any net-pay reading as a conservative policy choice, not the law.
2	"Annual leave may not be taken during notice (s20)"	Stage 2	The prohibition is that the employer may not *require or permit* leave during notice (BCEA s.20(5)(b)), so it applies even at the employee's request. Pay accrued leave out under s.40.
3	Disputes about s.34 deductions go to the Labour Court, not the CCMA (*O'Reilly v CCMA*, JR 2395/19)	Key Findings 3; Stage 13 table	Not followed: the citation could not be verified. Employees below the threshold may claim unlawfully deducted or withheld amounts at the CCMA under BCEA s.73A (CCMA awards on s.34 deductions are reported); labour inspectors can issue compliance orders; above the threshold, use the courts.
4	Unpaid amounts (below threshold): "generally within 1 year"	Stage 13 table	Resolved (19 October 2026): s.73A sets no fixed referral period and the LRA s.191 periods do not apply; refer within a reasonable time, and the Prescription Act s.11(d) three-year period applies to the debt. Do not tell employees one year.

#	Framework statement	Where	Refinement
5	Certificate of service: "In J2525/07 (2009) the Labour Court doubted its s77(3) jurisdiction"	Stage 5	The case is not identified by name. Rely on s.42 and the labour inspector's compliance-order route; verify before citing.
6	Two descriptions of Gallup's 45% finding: no leader "proactively discussed how their job was going" and a leader "had done little to discuss"	TL;DR; Stage 9	Use one wording: 45% said no manager or leader proactively discussed their satisfaction, performance or future in the three months before they left.
7	Exit interview held "once final pay is settled" and "before the last day"	Stage 9	Final pay falls due up to T+7, after the interview window. Read as "once final pay amounts are confirmed" (step 5.3).
8	Consent needed before collecting special personal information in exit interviews	Stage 9	Correct for information volunteered in the interview (health and similar). Race processed for EE purposes already has a lawful basis (POPIA ss.27(1)(b), 29, verify), so EE coding does not depend on consent.
9	Garden leave: "full pay and benefits, no duties, no access"	Stage 2	Add: a contractual basis or the employee's consent; compensation for average commission where earnings depend on work; and a decision on whether garden leave counts towards any restraint period.
10	Insolvency is the only financial-distress branch	Key Findings 6; decision table	Add business rescue: under Companies Act s.136 employment contracts continue on the same terms during rescue, and any retrenchment must follow LRA ss.189 and 189A. Do not apply Insolvency Act s.38 to a company in rescue.
11	Severance-benefit criteria stated without the fall-back	Stage 4	State that a lump sum that does not meet the "severance benefit" criteria is taxed as ordinary remuneration at marginal rates, not on the severance table.
12	"UIF 1%" deduction	Final-pay checklist item 8	Employee contribution 1% plus employer contribution 1%, subject to the earnings ceiling.
13	Retirement notice "3–6 months ahead"	Decision table	Label as BP: no statute sets the period.
14	"The employee-claims function of the legacy uFiling system closed in May 2026"	TL;DR; Stage 5	Confirmed: closed on 20 May 2026. Employer services were to migrate by August 2026; confirm current status before telling payroll which portal to use.



#	Framework statement	Where	Refinement
15	*Truworths v Nxasana* (WCC, 10 December 2025)	Stage 8	Full citation: *Truworths Ltd v Nxasana, Mr Price Group Ltd and Another* [2025] ZAWCHC 580. The court also enforced a six-month, competitor-limited restraint as proportionate.
16	*Mutsila* quotation	Key Findings 7	Paraphrase in client material and verify the exact wording against the reported judgment before quoting.
17	s.37D: "since 1 September 2024, a compensation order under s300 of the Criminal Procedure Act counts as a judgment"	Stage 4	Verified (19 October 2026): inserted by the Pension Funds Amendment Act 31 of 2024 with effect from 1 September 2024; not retrospective. Practice is still settling.

Corrections to existing GBS flows

#	Current statement	Where	Correction
1	Termination administration deadline "Next normal pay date or per contract (BP)"	Misconduct flow step 5.12	Final pay is due within 7 days of termination (BCEA s.32(3)). Replace with "Within 7 days of T (statutory)" and link to Phase 3 of this flow.
2	Implementation deadline "Per contract and notice period"	Incapacity flow step 5.10	Same correction: final pay within 7 days of T; certificate at T; UIF by the 7th of the following month.
3	Final pay and statutory documents "On termination (BP)"	Operational Requirements flow steps 5.1, 5.3	Add the statutory 7-day limit for pay and the UIF declaration deadline; keep "on termination" as the internal target.
4	Three separate termination checklists (D31, I34, R31)	Misconduct, Incapacity, Op Req form registers	Replace all three with OB41 (per-exit checklist) and OB20 (final pay), so every exit uses one control. Keep the reason-specific items as an annex.
5	Three dismissal notices (D30, I32, R29) with different closing content	Misconduct, Incapacity, Op Req	Keep the reason-specific parts; standardise the closing content on the OB12 common block (final pay, certificate, UIF, benefits, property and access, restraint, referral rights, EAP).



#	Current statement	Where	Correction
6	"UI-19 and UIF declarations so employees can claim unemployment benefits"; "You will receive … the UI-19"	Op Req step 5.3; Op Req Forms Pack R29 para 6	Update: the employer declares the termination by the 7th of the following month and supplies the UI-2.8 on request; employees claim on UIF Online, not uFiling, since 20 May 2026.
7	Tax directive missing from the checklist	Misconduct D31; Incapacity I34	Add the IRP3(a) directive for any lump sum (settlement, ex gratia, leave-heavy payouts where relevant) and the lifetime-aggregation note.
8	Onboarding checklist without an asset and access section	Resourcing RS39, step 5.7	Add the OB03 asset and access register so Phase 4 reconciles against a record made at issue.
9	Contract particulars list	Resourcing step 5A.1 (RS35)	Add: garden-leave and PILON clauses; specific written deduction consents for loans, advances and clawbacks; return-of-property and data-deletion duties; the agreed retirement age.
10	"Use exit-interview data in the barrier analysis"	Resourcing step 6.6	Now defined: link to Phase 5 (5.4–5.7) and OB40 so recruitment and exit data use the same designated-group coding.
11	Resignation during the process	Misconduct flow P5	Align with steps 1.4–1.5 here: run the constructive-dismissal screen and the retraction rule on every resignation tendered during a process; LA advises before T on whether the enquiry can conclude during notice.
12	Proxy replacement "immediately when a proxy leaves"	AARTO flow step 0.3	Correct as stated; add the trigger to this flow's authorities checklist (2.11, OB19) so it fires automatically on every exit.

Drafting issues in the law worth raising

- BCEA s.32(3) requires final pay within seven days of termination, but SARS directive turnaround is outside the employer's control and the Act has no mechanism for a directive delay. Employers are left choosing between late payment and paying without a directive.
- BCEA s.42 creates the duty to issue a certificate of service but no direct sanction; enforcement relies on the general inspection and compliance-order machinery.



- Neither the BCEA nor the LRA defines "resignation" or regulates its withdrawal. The rules come from case law, and the only Constitutional Court analysis is in a dissenting judgment (Toyota, Zondo J).
- LRA s.187(2)(b) does not define "normal or agreed retirement age" or say when the employer must act, which has produced the *Schweitzer* and *Datt* lines of authority.
- BCEA s.34(2)(d) refers to one quarter of "remuneration in money" without saying whether that is gross or net of statutory deductions.
- The EEA2 termination categories, the UIF termination reason codes and typical HRIS reason codes do not align, so the same exit can be reported three different ways.
- POPIA sets no specific retention periods for HR records, so employers must reconcile BCEA s.31 (3 years), TAA s.29 (5 years), EEA s.26 and prescription periods themselves.
- The UIF migration from uFiling to UIF Online has proceeded by departmental statement rather than gazetted transitional rules, leaving employers without a formal reference for which portal is authoritative for declarations.
- The two-pot legislation does not unlock the retirement component on retrenchment; proposals to change this are not law, and fund rules on the vested component vary.

Revision history — v1.1 (19 October 2026)

Version 1.1 implements every finding of the independent verification and validation review of 19 October 2026 (Critical 1, Major 6, Minor 11, Improvement 3). Items marked O are open. The four diagrams were checked and contain no statement affected by the findings, so they are unchanged.

#	Finding (severity)	Where	Change made
1	L6 says an internal appeal does not extend the 30-day referral period (Critical)	L6 common block (Exit correspondence register)	Replaced with the LRA s.191(1)(b)(i) rule: 30 days from dismissal or, if later, from the final decision to dismiss or uphold the dismissal on internal appeal.
2	Referral window start point incomplete (Major)	Exit calendar; P2; §1 Timing conventions	Calendar row now "Dismissal (or, if later, final appeal decision) + 30 days"; P2 deadline and Timing conventions state the appeal rule.
3	Waiver of employee notice treated as unsettled law (Major)	2.5	Restated BCEA s.38(2): pay for the waived period unless otherwise agreed in writing; authority changed to "BCEA s.38(2)".

#	Finding (severity)	Where	Change made
4	Notice-form and notice-during-leave rules miscited and understated (Major)	2.2	Now cites s.37(5) (writing; oral explanation) and s.37(6) (no employer notice during, or running with, Chapter Three leave except sick leave).
5	Insolvency severance and compensation omitted (Major)	Exit-type table; 1.13; 3.2	Added BCEA s.41(2) severance from the estate, Insolvency Act s.38(10) compensation and the s.38(7) 21-day proposals; 3.2 trigger and 1.13 authority updated.
6	Immediate death reporting attributed to COIDA (Major)	1.12; 3.12; statutory documents checklist; interfaces register	Death at work: DEL provincial director immediately and W.Cl.2 within 7 days (OHS Act s.24; GAR reg 8); COIDA s.39(1) report within 7 days.
7	BCEA s.39 (employer accommodation) misdescribed (Major)	4.4	Restated s.39(1)–(2) (termination without full notice or by PILON; one month or until lawful termination; PILON reduced); "(verify)" removed.
8	Wrong s.20 subsection for leave during notice (Minor)	2.3; Refinement #2	Cited as BCEA s.20(5)(b).
9	Wrong Medical Schemes Act provision (Minor)	3.14	Cited as s.29(1)(s)–(t).
10	Toyota: Zondo J judgment is a dissent (Minor)	§1 point 2; 1.3; 1.5; drafting issues	Described as a dissenting (minority) judgment; citation [2015] ZACC 40 added.
11	s.37D compensation-order amendment left as "verify" (Minor)	3.7; Refinement #17	Verified: Pension Funds Amendment Act 31 of 2024, from 1 September 2024, not retrospective.
12	s.73A time limit unresolved (Minor)	P6; Refinement #4	No fixed s.73A period; refer within a reasonable time; Prescription Act s.11(d) three years.
13	Deduction-dispute forum unresolved (Minor)	3.9; P7; Refinement #3	Added the s.73A CCMA route, compliance orders and courts; "forum: verify" removed.
14	Incomplete liability-register citations (Minor)	Liability register	Added BCEA s.75 (interest) and s.41(6)–(9) (severance disputes); "(verify)" removed.



#	Finding (severity)	Where	Change made
15	UIF employer-portal migration date overtaken (Minor)	§1 Legal status; 3.11	States that migration was expected by August 2026, is not confirmed as at 19 October 2026, and payroll must confirm the portal.
16	CCMA Rules 2023 counting rule missing (Minor)	§1 Timing conventions	Added rule 3 (calendar days; Saturday/Sunday/public holiday roll-forward; no 16 Dec–7 Jan exclusion).
17	s.198B(11) exception missing (Minor)	3.2; 2.7; L5; exit-type table; final-pay checklist	Added: no s.198B(10) severance where equivalent employment is offered or procured before expiry.
18	Unverified Gallup 2019 figure (Minor)	Phase 5 stay-interview note; Sources	Replaced with a "verify before quoting" note; Gallup update date added.
19	Mutsila citation (Improvement)	§1 point 7; 1.12	Added CCT 228/23, [2025] ZACC 17.
20	Two-pot statutory basis (Improvement)	0.6; 3.13	Added Pension Funds Amendment Act 31 of 2024; Revenue Laws Amendment Act Act number marked verify.
21	UIF ceiling hedge (Improvement)	§1 Figures in force	States R17,712 a month since 1 June 2021, with no later gazette as at 19 October 2026.
O1	Open: EE reporting window close (15 January 2027) and "first cycle against targets"	§1 point 8; 6.3; calendar	Not confirmed from a primary source; text unchanged; confirm against the DEL notice.
O2	Open: UIF employer services migration status	3.11; 6.7	Confirm before each declaration (see #15).
O3	Open: citations not re-verified	4.10; P8; 2.11; 5.15; liability register; 0.6	Truworths v Nxasana [2025] ZAWCHC 580; Companies Act s.70(6) text; BCEA s.84; Cybercrimes Act s.2; POPIA ss.99, 109; Revenue Laws Amendment Act number — existing "(verify)" markers kept.
O4	Open: questions for the author	Whole flow	Bargaining council or sectoral terms; employer accommodation; MHSA exit medicals for mining clients; designated-employer status.



Sources

- GBS Off-Boarding Framework: End-to-End Best-Practice Employee Exit Process for South African Employers (law as at 30 September 2026) (provided).
- GBS Misconduct, Incapacity, Operational Requirements (with Forms Pack Part 1), Resourcing, COIDA, PDA and AARTO process flows (project files), for format, form codes and cross-references.
- Code of Good Practice: Dismissal, 2025, GN 3470, GG 53294, 4 September 2025.
- Department of Employment and Labour, Minister's statement on the UIF Online claims platform, 25 May 2026 (closure of the legacy employee-claims portal on 20 May 2026; employer services to migrate by August 2026).
- *Truworths Ltd v Nxasana, Mr Price Group Ltd and Another* [2025] ZAWCHC 580 (10 December 2025); De Rebus, March 2026.
- Everett Spain and Boris Groysberg, "Making Exit Interviews Count", Harvard Business Review 94(4), April 2016 (recommendations only); Corey Tatel and Ben Wigert, Gallup, 9 July 2024 (updated 16 February 2026).
- The BCEA, LRA, EEA, UIA, UICA, COIDA, Income Tax Act, TAA, Pension Funds Act, Medical Schemes Act, Insolvency Act, Companies Act, Immigration Act, OHS Act, MHSA, POPIA, Cybercrimes Act and the cases named are cited from the Framework or general knowledge; verify wording, citations and any later authority before use.
- Independent V&V review (19 October 2026): BCEA ss.20, 37–42 (Department of Labour text); BCEA s.75 and Insolvency Act s.38 (Acts Online); Medical Schemes Act s.29 (Acts Online); SARS retirement lump-sum tables (2027 tax year); Pension Funds Adjudicator Quarterly Digest, October 2024 (s.37D); Toyota SA Motors v CCMA [2015] ZACC 40 (SAFLII); Mutsila v Municipal Gratuity Fund [2025] ZACC 17; Werksmans and CEOSA commentary on BCEA s.73A and LRA s.198B(11); DEL statement on UIF Online, 25 May 2026; GAR (GN R929 of 2003) regs 8–9.

This flow is a working document for legal review, not legal advice.